

Delaware Department of Education



English Learner Guidebook

GUIDE FOR DISTRICT IMPLEMENTATION OF
PROGRAMS FOR ENGLISH LEARNERS

Delaware Department of Education

EL Guidebook



Guide for District Implementation of Programs for English Learners

DELAWARE DEPARTMENT OF EDUCATION

English Learner Department

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DELAWARE'S VISION

English learners (ELs) are among the fastest-growing population in our Nation's schools. Delaware's schools have approximately 14,000 ELs, which mirrors the nation's average EL population of 10 percent. ELs are a highly diverse group of students with cultural and linguistic strengths, including their home languages. Despite these many assets, ELs face significant opportunity and academic achievement gaps.

The Delaware Department of Education is dedicated to ensuring that every Delaware student, including English learners, attain the highest level of academic success and language proficiency. We foster equitable access to rigorous standards and excellent educators and believe all educators are educators of language and literacy. We value the assets that our learners bring to enrich our schools and our state. We engage the community to support every student's educational and social-emotional needs thereby leading them to success in college, career, and life.



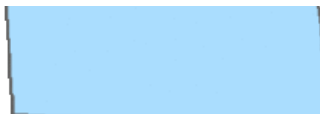
NEW CASTLE COUNTY 440% Growth Since 1997



KENT COUNTY 197% Growth Since 1997



SUSSEX COUNTY 597% Growth Since 1997



Important Note about the Terms English Learners (ELs) and ELLs

Please note that the State of Delaware refers to English learners as ELs. However, when referring to information from WIDA regarding ACCESS for ELLs 2.0, the language of this English Learner Guidebook will reflect Multilingual Learner.

In addition, there may be wording taken from the Office of Civil Rights, Non-Regulatory Guidance, and other published documents in which the term ELLs is used and the language reflected in DDOE's English Learner Guidebook will match this language.

Important Note about the Terms Parent and Guardian

Please also note that "Parent" refers to Parent/Guardian, even when it is not explicitly written in that way. A legal guardianship is a relationship established by the court where one person acts for the benefit and protection of another person. Please refer to your LEA to find out more about this topic in your agency.

Federal and State Regulations under Every Students Succeeds Act (ESSA)

FEDERAL AND STATE REQUIREMENTS

Title III Under Every Student Succeeds Act (ESSA)

The purpose of Title III is to 1) help ensure that English learners, including immigrant children and youth, attain English proficiency and develop high levels of academic achievement and 2) assist teachers (including preschool teachers), administrators, and other school leaders in developing and enhancing their capacity to provide effective instructional programs.

Title III also continues to promote parental, family, and community participation in language instruction educational programs for the parents, families, and communities of English learners. While accountability for the progress of English learners has been folded into Title I, along with all other student subgroups, Title III still remains the dedicated formula funding to states to improve the education of English learners and immigrant youth to learn English and meet challenging state academic standards and to implement effective language instruction programs.

Find more information about ESSA at the US Department of Education's website for ESSA: <https://www2.ed.gov/policy/elsec/leg/essa/index.html>



ESSA GUIDELINES

ESSA Guidelines and Federal obligations to English Learners

DDOE, districts, and schools share an obligation to:

- Identify and assess EL students in need of language assistance in a timely, valid, and reliable manner
- Provide EL students with a language assistance program that is educationally sound and successful
- Sufficiently staff and support the language assistance programs for ELs.
- Ensure ELs have equal opportunities to meaningfully participate in all curricular and extracurricular activities, including the core curriculum, graduation requirements, specialized and advanced courses and programs, sports, and clubs
- Avoid unnecessary segregation of EL students
- Ensure that ELs with disabilities under the Individuals with Disabilities Education Act (IDEA) or Section 504 are evaluated in a timely and appropriate manner for special education and disability-related services and that their language needs are considered in evaluations and delivery of services
- Meet the needs of ELs who opt out of language assistance programs
- Monitor and evaluate ELs in language assistance programs to ensure their progress with respect to acquiring English proficiency and grade level core content, exit ELs from language assistance programs when they are proficient in English, and monitor exited students to ensure they were not prematurely exited and that any academic deficits incurred in the language assistance program have been remedied
- Evaluate the effectiveness of a school district's language assistance program(s) to ensure that ELs in each program acquire English proficiency and that each program was reasonably calculated to allow EL students to attain parity of participation in the standard instructional program within a reasonable period of time
- Ensure meaningful communication with EL parents

LANDMARK LEGISLATION

The Supreme Court of the United States determined that in order for public schools to comply with their legal obligations under Title VI of the Civil Rights Act of 1964, they should take affirmative steps to ensure that English learners (ELs) can meaningfully participate in their educational programs and services. The following is a list of landmark cases that affected how state and local educational agencies address the needs of their EL populations.

Equal Educational Opportunities Act (1974)

Each state educational agency (SEA) should take appropriate action to overcome language barriers that impede equal participation by students in its instructional programs.

<http://www.justice.gov/crt/about/edu/>

Lau v. Nichols, 414 U.S. 563 (1974)

The U.S. Supreme Court ruled that discrimination based on language proficiency is discrimination based on national origin under Title VI of the Civil Rights Act of 1964, and that treating people with different needs in the same way is not equal treatment.

<http://www.justice.gov/crt/about/edu/documents/casesummary.php>

Castaneda v. Pickard, 648 F.2d 989 (5th Cir. 1981)

According to the Castañeda standard, schools should base their EL programs on sound educational theory. Schools should provide appropriate resources and personnel necessary and should evaluate programs to ensure that adequate progress is being made.

<http://faculty.ucmerced.edu/khakuta/LAU/IAPolicy/IA1bCastanedaFullText.htm>

Plyer v. Doe, 457 U.S. 202 (1982)

The U.S. Supreme Court ruled that undocumented children and young adults have the same right to attend public primary and secondary schools, as do U.S. citizens and permanent residents. Undocumented students are obliged under state law to attend school until they reach a mandated age.

<http://supreme.justia.com/cases/federal/us/457/202/case.html>

ADDITIONAL CIVIL RIGHTS GUIDANCE

More information about landmark court rulings regarding English learners can be found at ¡Colorín Colorado!

<http://www.colorincolorado.org/article/landmark-court-rulings-regarding-english-language-learners>

The U. S. Department of Education and the Office for Civil Rights (OCR) provide information for student and parents, as well as civil rights guidance and resources for education officials about their obligation to EL students and LEP parents.

<https://www2.ed.gov/about/offices/list/ocr/ellresources.html>

Dear Colleague Letter-- English Learner Students and Limited English Proficient Parents

<https://www2.ed.gov/about/offices/list/ocr/letters/colleague-el-201501.pdf>

Fact Sheet-- Ensuring English Learner Students Can Participate Meaningfully and Equally in Educational Programs

<https://www2.ed.gov/about/offices/list/ocr/docs/dcl-factsheet-el-students-201501.pdf>

Title III Program Guidance

<https://www2.ed.gov/programs/sfgp/legislation.html>

English Learner Toolkit

https://ncela.ed.gov/files/english_learner_toolkit/OELA_2017_ELsToolkit_508C.pdf

English Language Proficiency Standards and Framework

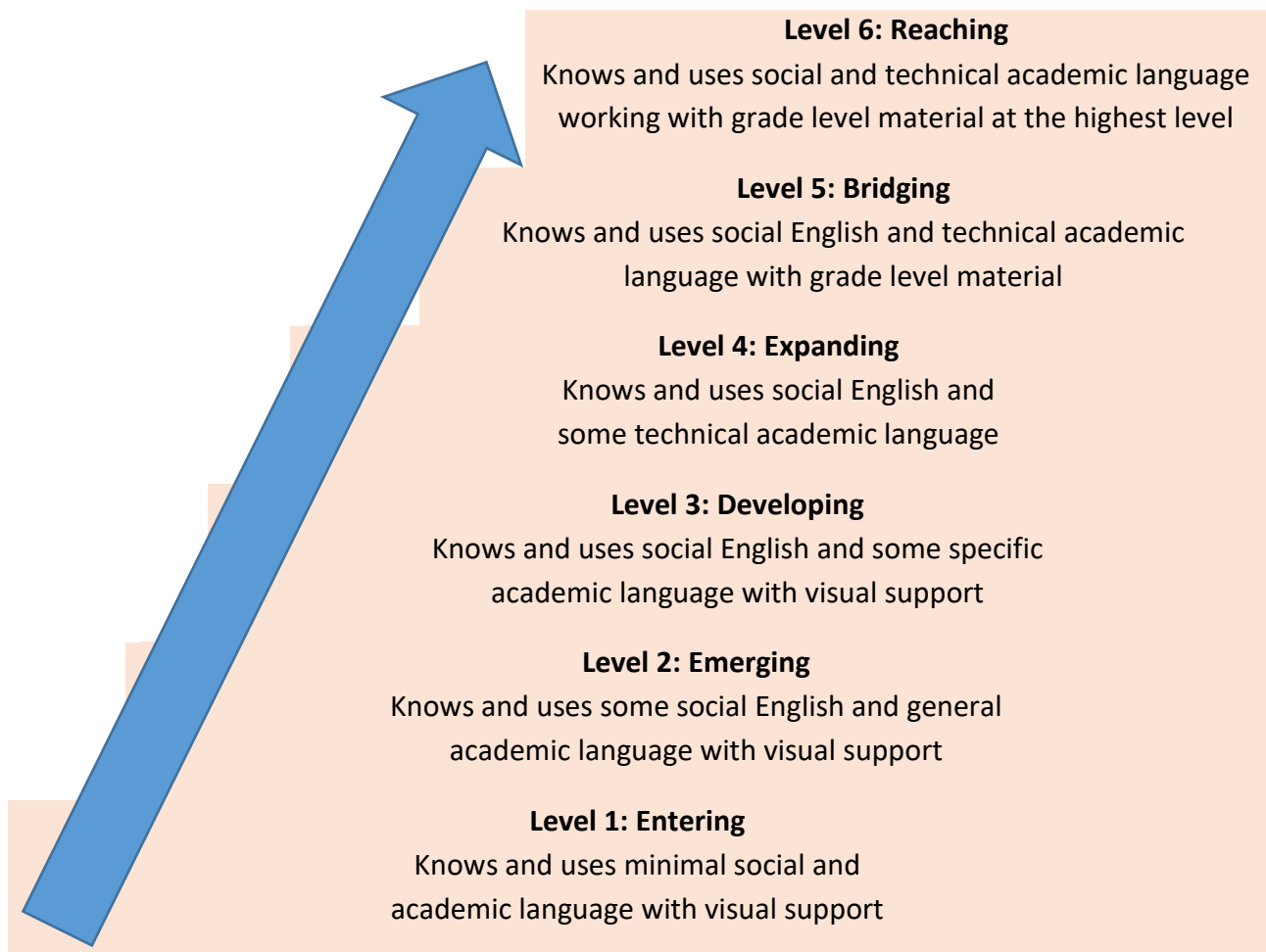
WIDA STANDARDS

Delaware is a founding member of the WIDA Consortium since 2003. Delaware has adopted the WIDA English Language Development Standards which provide educators with a connection between language development and academic content. Delaware aligns all language instruction for ELs to the five WIDA language proficiency standards for the academic content areas. The standards represent the language students need to be successful. **Social and Instructional Language** reflects the ways in which students interact socially to build community and establish working relationships with peers and teachers in ways that support learning. The remaining four standards present ways multilingual learners can communicate information, ideas and concepts necessary for academic success in **Language Arts, Math, Science and Social Studies**. The WIDA English language Development Standards work along with content standards to ensure students engage in the learning of the content standards as they continue to develop English.

English Language Development Standard 1	Social and Instructional Language	English Language Learners communicate for Social and Instructional purposes within the school setting
English Language Development Standard 2	Language for Language Arts	English Language learners communicate information, ideas and concepts necessary for academic success in the content area of Language Arts
English Language Development Standard 3	Language for Mathematics	English Language learners communicate information, ideas and concepts necessary for academic success in the content area of Mathematics
English Language Development Standard 4	Language for Science	English Language learners communicate information, ideas and concepts necessary for academic success in the content area of Science
English Language Development Standard 5	Language for Social Studies	English Language learners communicate information, ideas and concepts necessary for academic success in the content area of Social Studies

ENGLISH PROFICIENCY LEVELS

All students who participate in EL programs will have an identified English Language Development (ELD) level in listening, speaking, reading and writing. Each student's English proficiency level is determined by an initial placement test (WIDA Screener Kindergarten for Kindergarten, WIDA Screener Gr. 1-12, or DE Alternative EL Identification Protocol for students unable to participate in the traditional screening process, even with accommodations) or the yearly administration of the ACCESS for ELs assessment, which measures each student's English language development. Based on the performance on the language proficiency assessments, a student will be identified with one of the following levels of English Proficiency. The levels outline the typical progression of language development implied in the acquisition of English as an additional language from *Entering* to *Reaching*.



WIDA'S STANDARDS FRAMEWORK

The WIDA English Language Development Standards Framework, 2020 Edition WIDA has historically grounded its work in language development standards as a driver of equity for multilingual learners in curriculum, instruction, and assessment. This new edition reflects a continued commitment to these goals. Starting in 2004, all editions of the WIDA English Language Development (ELD) Standards have reflected the belief that multilingual learners are best served when they learn content and language together in linguistically and culturally sustaining ways. The 2020 Edition recommits to this belief by maintaining the five original WIDA ELD Standards Statements while adding new and expanded

Big Ideas of the WIDA ELD Standards Framework, 2020 Edition: Kindergarten–Grade 12

This 2020 Edition of the WIDA ELD Standards Framework is anchored by four **Big Ideas** that are interwoven throughout the document. Like the Can Do Philosophy, they support the design of standards-based educational experiences that are student-centered, culturally and linguistically sustaining, and responsive to multilingual learners' strengths and needs.

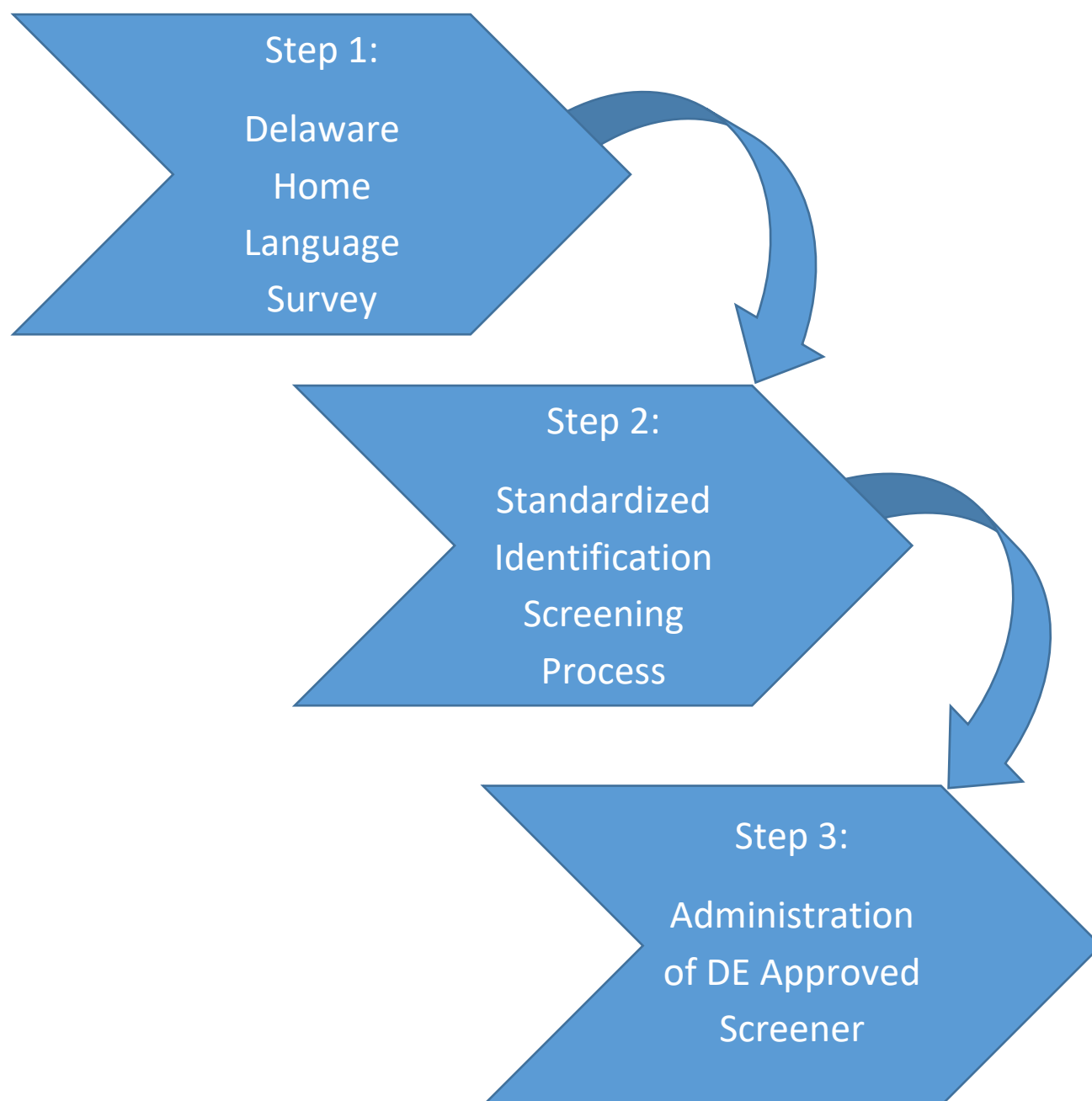
Figure 1-1: Big Ideas in the 2020 Edition



English Learner Entrance

ENGLISH LEARNER ENTRANCE PROCEDURES

Delaware's Standardized Three-Step Screening Process



See following pages for more information on each step.

ENGLISH LEARNER ENTRANCE PROCEDURES

Step 1: Delaware Home-Language Survey (HLS)

Every family enrolling a student in a Delaware school will complete the home language survey during the student's initial enrollment process. This form must be signed and dated by the parent/guardian and kept in the student's cumulative record.

School personnel should communicate clearly with parents to assure that answers given on the home language survey are accurate. If necessary, the assistance of an interpreter should be provided for parents to complete the survey.

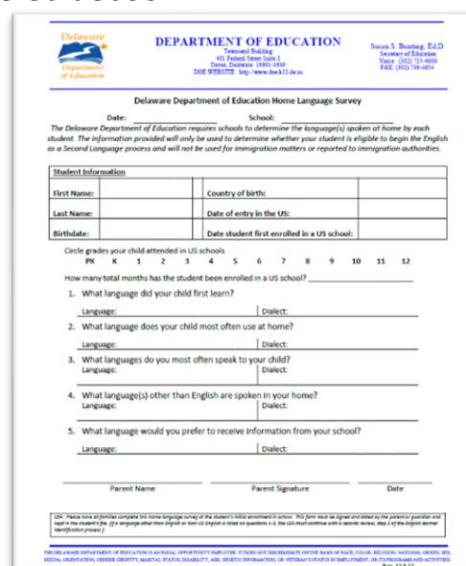
If a language other than English or non-US English is indicated on questions 1-3, the school initiates the standardized identification screening process/records review to **determine if further screening for English Language Proficiency is needed**. (See next page for more information and see Records Review form, found in Appendix B, Pg. 107)

Delaware's Standardized Home-Language Survey can be found in multiple languages:

<https://www.doe.k12.de.us/Page/2495>

-  [Arabic Home Language Survey](#)
-  [English Home Language Survey](#)
-  [Haitian Creole Home Language Survey](#)
-  [Hindi Home Language Survey](#)
-  [Korean Home Language Survey](#)
-  [Mandarin Home Language Survey](#)
-  [Punjabi Home Language Survey](#)
-  [Spanish Home Language Survey](#)
-  [Tagalog Home Language Survey](#)
-  [Vietnamese Home Language Survey](#)

An English version of the home language survey can be found in the Appendix of the Guidebook.



The form is titled "Delaware Department of Education Home Language Survey". It includes fields for Date, School, and a statement of purpose. Below this is a "Student Information" table with fields for First Name, Last Name, Country of birth, Date of entry in the US, Birthdate, and Date student first enrolled in a US school. The form also contains a series of questions about the student's language background, including how many months they have been enrolled in a US school, what language they first learned, and what languages they speak at home and in school. At the bottom, there are fields for Parent Name, Parent Signature, and Date. A footer note states: "Use: Please have an eligible student complete this home language survey of the student's home language at school. This form must be signed and dated by the parent or guardian and kept in the student's file. If a language other than English or non-US English is indicated on questions 1-3, the school must conduct a standardized identification screening process." The form is labeled "Rev. 11/17".

ENGLISH LEARNER ENTRANCE PROCEDURES

Step 2: Standardized Identification Screening Process (Records Review)

Giving all students a Home Language Survey during the enrollment process helps find students that may need to be screened for being an English learner. Screening helps schools dig further and determine which students will need to receive English learner services and programs. Schools do not need parent permission to screen a student. The guidance below will help to determine if screening is necessary. The EL Coordinator or designated staff member reviews the records for any student whose home language is not English and completes the Records Review Form. You can find the Records Review document in Appendix B on Pg. 107. A records review form should accompany the Home Language Survey and must be maintained in the student's cumulative record if a decision is made to **NOT** screen a student. (The Records Review form is optional, but highly suggested, if a screening tool is administered. All screening results must be maintained in the student's cumulative record or in the EL Database.)

*Note: Foreign exchange students and adopted students who have another language indicated on their Home Language Survey must follow the same process as any other student enrolling in a school. Screening and placement should follow the same procedures as any other potential English learner.

KEY: **GREEN=YES** **PURPLE=NO** **YELLOW=MAYBE, PROCEED**

Active EL	Transitioned/Re-Classified EL	Never-EL
NON-WIDA STATE TRANSFER	RE-CLASSIFIED EL— MEETS DE EXIT CRITERIA (4.7+)	IN US SCHOOLS 3+ YEARS
WIDA TRANSFER	RE-CLASSIFIED EL — DOES NOT MEET DE EXIT CRITERIA (4.7+) (Enter student assessment scores less than 4.7--Student will become an active EL in Delaware's EL Database)	IN US SCHOOLS LESS THAN 3 YEARS
IN-STATE TRANSFER	RE-CLASSIFIED WITH NO ASSESSMENT DATA WITHIN LAST 12 MONTHS	TESTS PROFICIENT ON DESSA
NO APPROPRIATE DATA FOUND (Or Proficiency Level Data is more than 12 months old)		DID NOT TEST PROFICIENT ON DESSA, NOT PART OF TESTED GRADE, OR NO DESSA RECORD
		WAS SCREENED AND DETERMINED INELIGIBLE—NO SCREENING NECESSARY; REMAINS INELIGIBLE

ENGLISH LEARNER ENTRANCE PROCEDURES

Records Review

For a student who was never identified as an English learner, but is suspected of having multiple languages at home, or a student in which a school has identified might need to be screened as an English learner, schools should use the following Records Review protocol to determine if further testing is required.

- 1. Determine whether screening is necessary or not according to the Records Review Form.**
- 2. Screen if needed.**
- 3. Enter EL or Potential EL into the EL Database with screening information to determine if student meets DE approved Entrance/Exit Criteria.**
- 4. If it is determined that a screening does not need to be administered, please note the reason on the Records Review Form and maintain the form in the student's cumulative record.**
- 5. The Records Review Form is optional for scenarios in which a screening is required, as the screening results will be maintained in the student's cumulative record and in our EL Database.**

ENGLISH LEARNER ENTRANCE PROCEDURES

Step 3: Administer WIDA Screener Kindergarten, WIDA Screener, or DE Alternative EL Identification Protocol

Schools should administer a Delaware approved English language proficiency placement screener (Kindergarten Screener; WIDA Screener Online or Paper; DE Alternative EL Identification Protocol) within 25 school days of enrollment to any student identified as having a non-English language background through the Home Language Survey.

Screeners are administered on an individual basis. The majority of students will be screened with WIDA's Online Screener. More information regarding an alternate screener or accommodations (such as the WIDA Screener paper version or the DE Alternative EL Identification Protocol) see the SwD/EL section in this document.

All scores of potential English learners who are assessed using a Delaware screening tool are to be entered into the English Learner Database, which is located on the Delaware Department of Education Identity Management System (IMS). Students who have reclassified or who are not eligible must still have their screening scores entered into the English Learner database so that accurate records of the student information and screening results can be maintained. These students will be coded as EL-NO in the system and will not need to receive English Language services.



***Please note: All potential English learners must be screened to be identified as an English Learner, regardless of their time of enrollment. If a student enrolls near, or during, our ACCESS testing window, the student must still be screened first with a DE approved (WIDA) screener to determine EL eligibility. If the student is identified as an English Learner, the student will take the Annual WIDA ACCESS for ELLs 2.0 assessment. Under ESSA, we are required to use the same standardized entrance and exit criteria for all English learners.**

DELAWARE APPROVED SCREENERS

Please review the 3 Delaware Approved Screener and the method of using a current *Out of State ACCESS* for placement. Then, refer to the page number listed for more information on how to use each screener and enter screening results into the EL Database.

K Screener

- A student in kindergarten who can meaningfully participate in the traditional English Proficiency screener with or without accommodations will take WIDA's K Screener. (Pg. 30)

WIDA's Screener Grades 1-12

- A student in grades 1-12 who can meaningfully participate in the traditional English Proficiency screener without accommodations will take WIDA's Screener online. (Pg. 31)
- A student in grades 1-12 who can meaningfully participate in the traditional English Proficiency screener, but will require accommodations can take WIDA's Screener online with accommodations or on paper. (Pg. 31)

DE Alternative EL Identification Protocol

- A student in grades K-12 who is unable to meaningfully participate in the traditional screeners even with accommodations will be screened with the Delaware Alternative Identification Protocol. (Pg. 32/Appendix F on Pg. 171)

Out of State Annual ACCESS

- A student who enters from another WIDA state with a WIDA ACCESS for ELLs 2.0 assessment within the last calendar year will be entered as an English Learner, using the out of state ACCESS in lieu of a screener. (Pg. 33)

WIDA'S SCREENER FOR KINDERGARTEN

WIDA Screener for Kindergarten is an individually administered paper-and-pencil test that helps educators identify students as English learners (ELs). It is typically given to students one time when they enter your school or district as they start Kindergarten or first grade.

Features

- Engaging story and activity-centered test experience.
- Responsive test design that lets students stop when they reach the extent of their current language skills.
- Local scoring of student responses means score reports can be generated immediately after testing.
- Effective identification tool when used as either a two-domain (Listening and Speaking) or four-domain (Listening, Reading, Speaking and Writing) test. Visit your member/state page for details on your screening policies and guidance on test administration.

First Semester vs. Second Semester

*Kindergarten students in their first semester (prior to Dec.31) will only take the Oral domains of listening and speaking (Part A and D). Second semester students will take all four domains (Parts A-F). In the first semester of Kindergarten, enter the Proficiency Level (PL) for listening and for speaking, as well as the oral language PL. This will calculate an oral language score, which can be used for determination of eligibility. In the second semester of Kindergarten, enter the Proficiency Level for each domain (listening, speaking, reading and writing) and the oral, literacy, and overall composite scores. See Database Entry on pg. 43 for more information on entering screening data.

More information about the WIDA Screener for Kindergarten can be found here:

[WIDA Screener for Kindergarten | WIDA \(wisc.edu\)](https://wisc.edu/wida-screener-for-kindergarten)

WIDA Screener Grades 1-12

WIDA Screener is an English language proficiency assessment given to a new student in Grades 1–12 to help educators identify the student as an English learner (EL). It is a flexible, on-demand assessment that can be administered at any time during the school year. WIDA Screener is available in two formats – online and paper. The State of Delaware encourages the use of the online screener, except in special circumstances. For more information on the use of an alternate screener or accommodations, refer to WIDA’s Accessibility and Accommodations Supplement.

WIDA Screener can take approximately 80 minutes depending on the student. The screener can be broken into domains as needed, but one domain should be completed within one school day. See Database Entry on pg. 38 for more information on entering screening data.

Key Features of WIDA Screener

- Includes separate forms for each grade-level cluster: **1, 2-3, 4-5, 6-8, 9-12**
- Aligns with the WIDA English Language Development Standards
- Assesses each of the four language domains of Listening, Speaking, Reading and Writing
- Reports proficiency level scores for each language domain and for three composite scores: Oral Language, Literacy and Overall Score

WIDA Screener has been built upon English Language Development Standards and corresponds with College and Career Readiness Standards including Common Core and Next Generation Science Standards.

First Grade: 1st Semester vs. 2nd Semester Screening

*First grade students in their first semester (prior to Dec.31) will take the K Screener using all four language domains and data will be entered in Proficiency Level in the EL Database. Second semester students in first grade and continuing through 12th grade will take the WIDA Screener. In the first semester, certain grade levels will be screened with a different grade level band. See pages 35 & 38 for more information on screening within the first semester.

DE ALTERNATIVE EL IDENTIFICATION

Due to the nature of some disabilities, certain students will be unable to participate in the traditional screening process, even with accommodations. When the team has determined that the student cannot meaningfully participate with accommodations, the Alternative English Learner Identification Protocol should be followed. There are three components to the Delaware Alternative English Learner Identification Protocol: 1) Parent Questionnaire 2) Observation Protocol 3) English Learner Determination Narrative. This form can be found in Appendix F on page 171.

All components must be completed for students who indicate a language other than English on the Home Language Survey in questions 1-3 but cannot meaningfully participate in the traditional screeners.

The Delaware Alternative English Learner Identification Protocol Determination Narrative must be: 1) Kept in the student cumulative file 2) Uploaded into the English Learner database as a PDF document 3) Shared with the parent regarding English learner status determination. For more information on EL Database Entry, see pg. 43 of this Guidebook.

The following indicate the two outcomes from the Alternative EL Identification Protocol:

1. Using the Delaware Alternative English Learner Identification Protocol, the team has determined that the above named student is identified as an English Learner. Appropriate services to support English language development will be discussed with the team. The student will be assessed annually using the WIDA ACCESS Alternative Assessment.
2. Using the Delaware Alternative English Learner Identification Protocol, the team has determined that the above named student is not identified as an English Learner at this time. The district/charter will continue to monitor the student's language development.

**If the student consistently did not respond in either language, the protocol must be administered annually as communication develops.*

OUT OF STATE EL ENTRANCE

When a student enters from out of state, it is important to do a records review. If the student has already been identified as an English learner in another state, there are two possibilities for entrance into our English learner program:

- 1) the student has come from a WIDA state and has an ACCESS for ELLs 2.0 assessment within the last 12 months**

If the student is entering from a WIDA state and has an ACCESS for ELLs 2.0 assessment within the last 12 months, that annual ACCESS may be used to place a student in our English learner program. The annual ACCESS will serve as the screener, however, it will not get entered into the screener portion of the database. See EL Database Entry on page 43 on this Guidebook for more information on how to use a WIDA ACCESS from another state to enter an Out of State Student into a Delaware English learner programs.

- 2) the student has NOT come from a WIDA state and/or has no evidence of a Delaware approved screener or a current (within the last 12 months) WIDA ACCESS for ELL's 2.0 assessment.**

If the student has NOT come from a WIDA state, and has no evidence of a DE approved screener or an ACCESS for ELLs 2.0 within the last 12 months, a Delaware approved screener will need to be given to determine an accurate proficiency level and placement within an English learner program.

ENGLISH LEARNER ENTRANCE CRITERIA

The WIDA Screener Kindergarten and WIDA Screener test administration training is available on the WIDA Secure Portal. All test administrators must successfully complete the Test Administrator Quizzes with a score of 80% or greater. Test administrators must also complete the DeSSA Security Training course on PDMS (located in IMS). This training is designed for individuals who may be interacting with the assessment testing environment in any way.

***First semester students (prior to December 31) may be required to be screened at a different grade band. Please see the information below based on the appropriate grade level. See information below by grade level or refer to page 38 for a Grade K-12 one-page chart.**

Kindergarten

1st Semester (Through Dec. 31)= Listening and Speaking Domains of K Screener

- Oral Proficiency Level Below 5.5

2nd Semester (After Dec. 31)= All 4 Language Domains of K Screener

- Composite Proficiency Level Below 5.0

1st Grade

1st Semester (Through Dec. 31)= All 4 Language Domains of K Screener

- Composite Proficiency Level Below 5.0

2nd Semester (After Dec. 31)= All 4 Language Domains of WIDA SCREENER (Gr. 1)

- Composite Proficiency Level Below 5.0

2nd Grade

1st Semester (Through Dec. 31)= All 4 Language Domains of WIDA SCREENER (Gr. 1)

- Composite Proficiency Level Below 5.0

2nd Semester (After Dec. 31)= All 4 Language Domains of WIDA SCREENER (Gr. 2-3)

Composite Proficiency Level Below 5.0

Continued on next page

ENGLISH LEARNER ENTRANCE CRITERIA

3rd Grade

1st Semester (Through Dec. 31)= All 4 Language Domains of WIDA SCREENER (Gr. 2-3)

- Composite Proficiency Level Below 5.0

2nd Semester (After Dec. 31)= All 4 Language Domains of WIDA SCREENER (Gr. 2-3)

- Composite Proficiency Level Below 5.0

4th Grade

1st Semester (Through Dec. 31)= All 4 Language Domains of WIDA SCREENER (Gr. 2-3)

- Composite Proficiency Level Below 5.0

2nd Semester (After Dec. 31)= All 4 Language Domains of WIDA SCREENER (Gr. 4-5)

- Composite Proficiency Level Below 5.0

5th Grade

1st Semester (Through Dec. 31)= All 4 Language Domains of WIDA SCREENER (Gr. 4-5)

- Composite Proficiency Level Below 5.0

2nd Semester (After Dec. 31)= All 4 Language Domains of WIDA SCREENER (Gr. 4-5)

- Composite Proficiency Level Below 5.0

6th Grade

1st Semester (Through Dec. 31)= All 4 Language Domains of WIDA SCREENER (Gr. 4-5)

- Composite Proficiency Level Below 5.0

2nd Semester (After Dec. 31)= All 4 Language Domains of WIDA SCREENER (Gr. 6-8)

- Composite Proficiency Level Below 5.0

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ENGLISH LEARNER ENTRANCE CRITERIA

7th-8th Grade

1st Semester (Through Dec. 31)= All 4 Language Domains of WIDA SCREENER (Gr. 6-8)

- Composite Proficiency Level Below 5.0

2nd Semester (After Dec. 31)= All 4 Language Domains of WIDA SCREENER (Gr. 6-8)

- Composite Proficiency Level Below 5.0

9th Grade

1st Semester (Through Dec. 31)= All 4 Language Domains of WIDA SCREENER (Gr. 6-8)

- Composite Proficiency Level Below 5.0

2nd Semester (After Dec. 31)= All 4 Language Domains of WIDA SCREENER (Gr. 9-12)

- Composite Proficiency Level Below 5.0

10th-12th Grade

1st Semester (Through Dec. 31)= All 4 Language Domains of WIDA SCREENER (Gr.9-12)

- Composite Proficiency Level Below 5.0

2nd Semester (After Dec. 31)= All 4 Language Domains of WIDA SCREENER (Gr. 9-12)

- Composite Proficiency Level Below 5.0

***Important Information About Accessibility and Accommodations on WIDA Screener:**

The following accommodations are **NOT** allowed for use on the WIDA Screener Online:

Read aloud test items or passages on the Reading test; translate test items in a language other than English; reading of test items in a language other than English; bilingual word-to-word dictionary; student responds to test questions in a language other than English

For more information visit WIDA Screener Test Administration Manual on your WIDA Secure Portal.

ENGLISH LEARNER ENTRANCE CRITERIA

All potential English learners should be assessed using the appropriate “grade-level band” screener as noted on the below table. Students must be assessed in all 4 domains of language (listening, speaking, reading, and writing) and composite proficiency level must be below 5.0 to be classified as an English learner, with the exception of Kindergarten in the first semester. **In Kindergarten during the first semester, a student will only take the oral language domains of listening and speaking. The oral proficiency level for Kindergarten in the first semester must be below 5.5 for a student to be classified as an English learner.* Beginning with the second semester of Kindergarten, through 12th grade, students must take all four domains of the WIDA Screener in the grade band indicated below. Entrance into the EL Program is determined by a composite proficiency score below 5.0. A student who scores 5.0 or greater will be determined ineligible for classification as an English learner.

Grade	Semester 1--Through December 31	Semester 2--After December 31
K	K Screener <i>*Listening and Speaking only; EL Entrance if Oral Language Proficiency Level is Below 5.5</i>	K Screener All four domains of language; EL Entrance if Overall Composite Proficiency is below 5.0
1	K Screener	WIDA Screener (Gr. 1)
2	WIDA Screener (Gr.1)	WIDA Screener (Gr. 2-3)
3	WIDA Screener (Gr. 2-3)	WIDA Screener (Gr. 2-3)
4	WIDA Screener (Gr. 2-3)	WIDA Screener (Gr. 4-5)
5	WIDA Screener (Gr. 4-5)	WIDA Screener (Gr. 4-5)
6	WIDA Screener (Gr. 4-5)	WIDA Screener (Gr. 6-8)
7	WIDA Screener (Gr. 6-8)	WIDA Screener (Gr. 6-8)
8	WIDA Screener (Gr. 6-8)	WIDA Screener (Gr. 6-8)
9	WIDA Screener (Gr. 6-8)	WIDA Screener (Gr. 9-12)
10-12	WIDA Screener (Gr. 9-12)	WIDA Screener (Gr. 9-12)

PARENT NOTIFICATION OF EL STATUS

EL Program Placement Notification

Schools must notify parents/guardians of their child's enrollment in an EL Education Program. This notice should take place no later than 25 days after the beginning of the school year or after enrollment during the school year.

The notice should be in the home language of the parent. It should be communicated in non-technical language that identifies a student as EL or non-EL. In addition, the following information should be included:

- Assessment Administered
- Current English proficiency levels
- Current Program Placement
- Exit Requirements
- Communication regarding expected rate of graduation and SwD/EL
- Parental rights and options

All parents of ELs, not just newly enrolled ELs, must be notified annually of the students' placement in a language instruction program. In addition, federal law requires that schools and districts effectively communicate with all parents and guardians, regardless of the percentage of students that speak a language other than English. A copy of written notices to the parents should be kept in the student's cumulative record.

*Districts may issue one parental notification that meets federal requirements for all new EL enrollees. Sample letters provided by the DDOE are: *EL Entry Eligible*, *EL Entry Ineligible*, *EL Annual Eligible*, *EL Annual Ineligible*, *Waiver of Services*. Sample letters provided by the DDOE in the following languages: *Arabic*, *Gujarati*, *Haitian Creole*, *Hindi*, *Korean*, *Mandarin Chinese*, *Punjabi*, *Spanish*, *Tagalog*, and *Vietnamese* can be found at DDOE's English Learner Department <https://www.doe.k12.de.us/Page/2373>

MISIDENTIFIED STUDENTS

It might be possible that a student has been misidentified as an English learner. Please follow the steps below to ensure that a student's status is correctly identified in the English Learner Database.

If a student is suspected as being misidentified as an English Learner, the school should speak with the parent/guardian first. If the parent/guardian indicates that there is not another language spoken at home or by the student, the parent/guardian should write a letter to the school. The letter should be scanned and sent to Delaware Department of Education. DDOE will correct the EL status in the English Learner Database. A copy of the letter should be retained in the student's cumulative file.

If a school identifies a student in error, the school should submit a KACE ticket and enter it into the HELP Desk. DDOE will review the case. If necessary, DDOE will change the EL status in the English Learner Database. A copy of the letter should be retained in the student's cumulative file.

OPTION TO WAIVE SERVICES

Option to Waive Services Notification

Parents/guardians have the option to request that their children be withdrawn from language services in writing. Schools should NOT recommend that parents decline language services. Instead, schools are responsible for addressing parent concerns and communicating the benefits of the language development program to parents who want to waive their rights to language services. A district/charter may elect to create a waiver form that allows parents to opt-out of EL services. A written notice or waiver must include a parent signature and date and must be maintained in the cumulative record of any student who has been removed from service.

All students who have been withdrawn from services by a parent/guardian request must:

- Receive an equal opportunity to education based on language needs
- Still be administered the annual state language proficiency test (WIDA ACCESS for ELLs 2.0; ACCESS-Alt.) until the student reaches language proficiency (4.7 or greater)
- Still be administered state required assessments and counted towards the district's progress for academic and graduation outcomes in the EL subgroup

*Please note: An LEA has discretion on whether to allow a student, 18 years or older, the right to waive their own services. Guidance above must still be followed, including, but not limited to, addressing concerns and communicating the benefits of the language development program, participation in required assessment, and maintenance of records in waiving services.

A sample waiver provided by the DDOE can be found in the following languages: *Arabic, Gujarati, Haitian Creole, Hindi, Korean, Mandarin Chinese, Punjabi, Spanish, Tagalog, and Vietnamese* at DDOE <https://www.doe.k12.de.us/Page/2373>

Parent withdrawal must be entered into the EL Database using the "Type Instruction" field. Check the box indicating parental request and use the dropdown menu to select "regular classroom instruction" to indicate the absence of EL programming. Use the "Comment" field below to enter information regarding this withdrawal and attach the parental waiver form in PDF form. Keep a copy of this waiver in the student's cumulative folder.

IMMIGRANT STATUS

Immigrant Child/Youth Under Title III of ESEA

The term “immigrant child and youth” is defined in Section 3201(5) of the ESEA. Immigrant child and youth refers to individuals who:

- a) are aged 3 through 21
- b) were not born in any State
- c) have not been attending one or more schools in one or more States for more than 3 full academic years

*State, as defined in 3201(23), is to include all 50 states, the District of Columbia (Washington D.C.), and Puerto Rico. Students born in any of these places are not to be included as “immigrant” students under Title III.

**Please Note: A kindergartner will be considered an immigrant if the student has moved into the United States within the last 3 years. A kindergartner that was born in the United States or Puerto Rico, or immigrated to the U.S. more than 3 years ago, will not be considered an “immigrant” even though this may be a student’s first time in a school setting.

In the English Learner Database, students should not be listed as immigrant if they do not meet all three criteria above. When a student has reached the three-year mark of enrollment (“Date student first enrolled in a US school” in the EL Database) the immigrant status will automatically change to NO on the nightly update. (Keep in mind that “Date student first enrolled in a US school” refers to “State” as defined in Section 3201(23) as noted above.)

The term “immigrant” as used in Title III is not related to an individual’s legal status in the United States. Under the U.S. Supreme Court case *Plyler v. Doe*, schools are required to provide equal access to a basic public education to all students, regardless of immigration status. For more information see OCR’s Guidance for School Districts to Ensure Equal Access for All Children to Public Schools Regardless of Immigration Status, available at <http://www2.ed.gov/about/offices/list/ocr/frontpage/faq/rr/policyguidance/raceorigin.html>

ENGLISH LEARNER DATABASE (IMS)

Entering Students into the English Learner Database

When a student completes a home language survey, a records review is completed to determine what screening will need to take place to determine English proficiency. If a student is screened, **regardless of the outcome**, that student must be entered into the EL Database. Depending on the results of the entry data, a student will either be placed into an EL program as an EL-YES or the results will make the student ineligible for services and will indicate EL-NO.

***Students with an approved DE Screener:**

To enter a student into the EL Database, input the information from the Home Language Survey. On the student profile page, under EL Placement, choose which screener was administered (+WIDA Screener Kindergarten WIDA Screener Kindergarten DEL, +WIDA Screener, or +ALT Identification Protocol). Input the screening information as appropriate. The EL Database will use the entrance criteria set forth for the State of Delaware to classify the student as EL-YES or EL-NO.

WIDA Screener Entry

WIDA Screener for Grades 1-12 requires entry of proficiency levels to the whole and half integers (1.0, 1.5, 2.0, 2.5, 3.0, 3.5, 4.0, 4.5, 5.0, etc.) and will be entered for all 4 domains.

First Semester vs. Second Semester Kindergarten Screening Entry

Kindergarten students in their first semester (from 7/1 until 12/31) will only require the Oral domains of listening and speaking (Part A and D). Second semester students will take all four domains (Parts A-F). In the first semester of Kindergarten, enter the proficiency level for listening and speaking as well as the oral language proficiency. In the second semester of Kindergarten, enter the proficiency level for each domain, as well as oral, literacy, and overall composite proficiency levels.

Continued on next page

ENGLISH LEARNER DATABASE (IMS)

Out of State Entry

Students who enter from out of state are entered differently into the EL Database. See below for information about entering students both with and without valid language assessments (ACCESS).

***Students from out of state without a valid language assessment:**

If a student has entered from another state and does not have a DE Approved Screener or valid language assessment (ACCESS for ELLs 2.0) within the last 12 months, a screener must be administered. Follow directions for students with an approved screener from above once the screening has been completed.

***Students from out of state with a valid language assessment:**

If a student has entered from out of state and has an ACCESS for ELLs 2.0 assessment within 12 months, the ACCESS may be used in lieu of the screener. After entering the home language survey information, choose the option to enter an out of state test score on the Annual Assessment card (under EL Placement card.) The EL Database will then prompt you to enter the Out of State ACCESS scores to determine eligibility. All scores (scale scores and proficiency levels) must be completed for the student to be entered with out of state ACCESS results in lieu of a screener.

Alternative Identification Protocol Entry

***Students with the Delaware Alternative English Learner Identification Protocol**

Students who cannot meaningfully participate in the traditional screeners, even with accommodations, may be assessed with the DE Alternative Identification Protocol. This form contains 1) Parent Questionnaire, 2) Observation Protocol, 3) English Learner Determination Narrative. This form must be uploaded as a PDF into the English Learner Database. After entering the home language survey, the student profile page will allow for EL Placement and screener information. Choose +Alt-Identification. Enter your EL Status Decision, comments and an upload of the Alternative Identification Protocol as a PDF.

English Learner Programs and Scheduling

PROGRAM PLACEMENT

After a student is identified with the WIDA Screener or DE Alternative Identification Protocol, an English learner (EL) should receive language services until they are proficient in English, as measured by WIDA ACCESS for ELLs 2.0 and Delaware's standardized exit criteria of composite proficiency of 4.7 or greater (or 5.5 for oral proficiency with Kindergarten WIDA Screener Kindergarten in the first semester).

English Learner programs should be designed to enable ELs to attain both English and content area proficiency. The English proficiency level, grade level, and educational background should be considered to determine which EL Program Placement is appropriate and the amount of English Language Development support that is required.

One of Delaware's English Learner Programs should be chosen by the school for each student receiving English Learner Language Services and that program placement should be entered into the EL Database. More details about the programs listed below are provided on the continuing pages.

Delaware's English Learner Programs

Dual Language Immersion: Full-Service, Push-In, Pull-Out	English as a Second Language (ESL): Push-In, Pull-Out, Blended	Sheltered English Instruction In Content Area
Newcomer Program	Transitional Bilingual	English Language Development Class
Heritage Program	Co-teaching	Specially Designed Programs for SwD/EL: Push-in, Pull-Out, Consultative

DE ENGLISH LEARNER PROGRAMS

Delaware's Program Models are listed in charts below. One of these programs will be entered into the EL Database for each student receiving English Learner Language Services.

Program Model	Description of Model	Students Served	Teacher Qualifications
Dual Language Immersion: Full-Service Serves grades K-12	English partner teacher provides English language development and content area simultaneously.	Identified ELs participating in immersion dual language programs	Elementary, content area and Bilingual or EL teacher certification
Dual Language Immersion: Push-In Serves grades K-12	EL certified teacher provides push-in language support in the immersion classroom.	Identified ELs participating in immersion dual language programs	EL teacher certification
Dual Language Immersion: Pull-Out Serves grades K-12	EL certified teacher provides pull-out support to a student in an immersion classroom.	Identified ELs participating in immersion dual language programs	EL teacher certification
ESL Push-in Serves grades K-12	The ESL teacher provides language support and/or instruction in content area in the general education classroom.	Identified ELs with various languages/cultural backgrounds.	EL teacher certification
ESL Pull-out Serves grades K-12	The EL is pulled out of the regular classroom for small group language instruction.	Identified ELs with various languages/cultural backgrounds.	EL teacher certification
Blended Push-in and Pull-out Serves grades K-12	The EL receives a combination of push-in and pull-out services as mentioned above.	Identified ELs with various languages/cultural backgrounds.	EL teacher certification
Sheltered English Instruction Serves grades K-12	Content certified teachers who have received training on strategies to make subject-area content rigorous, culturally relevant, and comprehensible for ELs	Identified ELs with various languages/cultural backgrounds.	Content certified, EL teacher certification

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DE ENGLISH LEARNER PROGRAMS

Program Model	Description of Model	Students Served	Teacher Qualifications
Newcomer Program Serves grades K-12, but generally used in secondary schools	Newcomer ELs from various language backgrounds receive intensive English language development the majority of the day and mainstreamed for electives.	Limited and/or no English proficiency. All recent immigrants. Various languages/cultural backgrounds.	Bilingual or EL teacher certification
Transitional Bilingual Serves grades K-5	Instruction initially provided in the student's native language but gradually phased out.	Identified ELs with various languages/cultural backgrounds.	Bilingual Certification
English Language Development Class Serves grades 6-12	English language development class that is aligned to the WIDA standards and counts as an elective. EL student should participate in core content classes.	Identified ELs with various languages/cultural backgrounds.	EL teacher certification
Heritage Language	Heritage Language Programs allow native speakers an opportunity to participate in native language instruction at a level that enhances their culture and academic language.	Native speakers of the language.	Bilingual or World Language Certification
Co-Teaching Serves grades K-12	ESL teacher co-teaches with content area teacher and provides EL supports during instruction.	Identified ELs with various languages/cultural backgrounds.	EL teacher certification
Specially designed pull-out support (Only for SWD ELs) Serves grades K-12	Special Ed and EL team determines the appropriate pull-out support and materials for the student.	Dually identified ELs	EL teacher certification
Specially designed push-in support (only for SWD ELs) Serves grades K-12	Special Ed and EL team determines the appropriate push-in support and materials for the student.	Dually identified ELs	EL teacher certification
Consultative Services (only for SWD ELs) Serves grades K-12	Special Ed and EL teams meet for a designated period of time to determine appropriate supports and monitoring of supports for student.	Dually identified ELs	Highly qualified teacher

SCHEDULING AND PROGRAMMING

State Guidance for Scheduling English Language Development (ELD)

After determining that a student has qualified for EL Program Services (based on a Delaware approved screener), entrance scores and program placement information will be entered into the EL Database located on IMS. Schools should determine programming for English language development based on the student's overall language proficiency level and program model.

Level	WIDA ELD Level	Characteristics of English Language Development Level
1	Entering	Preproduction: Student may not understand or speak English with the exception of a few isolated words
2	Emerging	Production: Student may understand and speak conversational and academic English with hesitancy and difficulty; understands only parts of lessons with simple directions; pre-emergent or emergent levels of reading and writing in English that are significantly below grade level expectations
3	Developing	Intermediate: Student may understand and speak conversational and academic English with decreasing hesitancy and difficulty; post-emergent/developing reading comprehension and writing skills in English; English literacy skills allow for demonstration of academic knowledge in content areas with assistance
4	Expanding	Advanced Intermediate: Student may understand and speak conversational English without apparent difficulty, but understand and speak academic English with some hesitancy; continues to acquire reading and writing skills in content areas needed to achieve grade level expectations with assistance
5	Bridging	Advanced: Student may understand and speak conversational and academic English well; may not be completely proficient in reading, writing, and content areas skills needed to meet grade level expectations; may still require occasional support

ENGLISH LANGUAGE ACQUISITION PLAN

While not required, an English Language Acquisition Plan (ELAP) is a great way to ensure that we are meeting the needs of each English Language Learner. This plan is a collaborative tool that can be used among educators to best meet the needs of each English Learner. An English Language Acquisition Plan provides information for daily classroom implementation including, but not limited, to:

- Student Demographics and Background Information
- Information regarding SIFE, Immigrant Status and/or Duress
- Accommodations and Modifications
- Strengths and Weaknesses in Language and Content
- Language Goals
- Academic Content Goals
- Grading
- Anecdotal Information

The purpose of this plan is to create a document that will help ensure collaboration among EL teachers/coordinators and mainstream teachers with a goal of English language proficiency and academic success for each individual English Learner.

An EL Coordinator or school designee should complete information regarding student's educational background (including SIFE), placement information, and language and academic goals for the school year. This should be updated every year and shared with the classroom teacher and other team members who will be responsible for helping the student attain English Language Proficiency and academic success. All teachers (including those offering specialized classes such as Gym, Technology, electives, etc. should review and understand the plan and implement it within the school setting on a daily basis.

See Appendix for templates of Students with Interrupted Formal Education (SIFE) and English Language Acquisition Plan.

INTERRUPTED FORMAL EDUCATION

Students with Interrupted Formal Education (SIFE):

ELs arriving from other countries may have intermittent education or no exposure to formal education. Receiving schools should inquire into a student's previous educational history to determine academic levels for placement and scheduling. Interrupted formal education of a student may require remediation beyond English as a Second Language or bilingual education services.

The SIFE Oral Interview Questionnaire is a diagnostic tool to identify gaps in educational history that will lead to appropriate grade placement and customized English language development services. It is an additional assessment that will help you determine if a student has had an interrupted formal education.

The SIFE Oral Interview Questionnaire:

- Should be given after a student has been designated as an EL (after the Home Language Survey (HLS) and WIDA Screener have been administered)
- Should only be administered to students in grades 4-12
- May need to be completed with the help of an interpreter

At this time, the SIFE form is available only in English. The district/school may choose to use an interpreter to complete the SIFE. Contact the DDOE approved vendors listed for a list of interpreters. <http://www.doe.k12.de.us/infosuites/staff/fedstprog/TitleIII/TitleIIIFILES/AwardNoticeInterpretTransVendors.pdf>

The SIFE Oral Interview is available in a Word Document and in an editable PDF. A sample can be found in the Appendix. Descriptions and further information are also provided at: <https://www.doe.k12.de.us/Page/2496>

Meaningful Access and Best Practices for the Success of English Learners

ACADEMIC ACHIEVEMENT STANDARDS

English Learner programs should be guided by the Common Core State Standards (CCSS), Next Generation Science Standards (NGSS) and other statewide standards, which are used to guide instruction for all students.

For more information and resources for DE Content Standards and English learners, visit:

- Common Core State Standards

<http://www.corestandards.org/>



- Application of Common Core State Standards for English Language Learners

<http://www.corestandards.org/assets/application-for-english-learners.pdf>

- Next Generation Science Standards

<http://www.nextgenscience.org/>



- NGSS and English Learners

<http://ell.stanford.edu/event/next-generation-science-standards-ells>



- Common Core and English Language Learners

<http://www.colorincolorado.org/common-core-and-english-language-learners>



- The Common Core State Standards and English Learners Resource Page

<http://www.tesol.org/advance-the-field/standards/the-common-core-state-standards-and-english-learners>

MEANINGFUL ACCESS FOR ELS

Schools should place ELs in age-appropriate grade levels for meaningful access to grade-appropriate curricula and an equal opportunity to graduate on time. ELs should also have equal opportunities to meaningfully participate in specialized programs – whether curricular, co-curricular, or extracurricular.

Core Curriculum

ELs have equal access to high-level programs and instruction to prepare them for college and career. The language instructional program should also provide ELs with meaningful, comprehensible access to instruction in all content areas required by Delaware academic standards, including the Common Core State Standards for ELA and Math, as well as Next Generation Science Standards. Appropriate classroom supports and scaffolds are implemented to ensure that English learners meaningfully participate in rigorous coursework. Schools should not unnecessarily segregate English learners.

Co-Curricular/Extracurricular

ELs should equally and meaningfully participate in programs including, but not limited, to:

- Pre-Kindergarten Programs
- Magnet Programs
- Career and Technical Programs
- Counseling Services
- Advanced Placement/ International Baccalaureate
- Performing and Visual Arts
- Talented and Gifted Education (GATE)*
- Band, Sports, and Interest Clubs
- Academic Clubs/Honor Societies
- Online and Distance Learning Opportunities

*Schools should ensure that evaluation and testing procedures from Gifted and Talented Education (GATE) and other specialized programs do not screen out ELs based on limited English proficiency.

INSTRUCTION AND INTERVENTION

Response to Instruction and Intervention (RtI²) and Multi-Tiered Systems of Support (MTSS)

A Multi-Tiered System of Support (MTSS) is a prevention-based framework of team-driven data-based problem solving for improving the outcomes of every student through a continuum of evidence-based practices. RtI, RtI², and other multi-tiered systems of support build upon a framework of Tier 1, universal core instruction for all students, followed by Tier 2, secondary prevention and finally with Tier 3, intensive and targeted interventions. Recently RtI has come to be known as RtI² which now includes instruction, as well as the former (RtI) intervention.

Tier 1—Universal/Core Instruction

RtI² designed to enrich the learning environment for all students. English learners should follow the RtI² process for multi-tiered instruction and intervention. English language development is part of the Universal/Core Instruction that is provided under Tier 1 and includes the language development instruction that students may receive (e.g., bilingual, ESL, sheltered, or dual language instruction). English language instruction is not viewed as an intervention (Tiers 2 or 3) but rather as part of core instruction.

Tier 2—Targeted Intervention

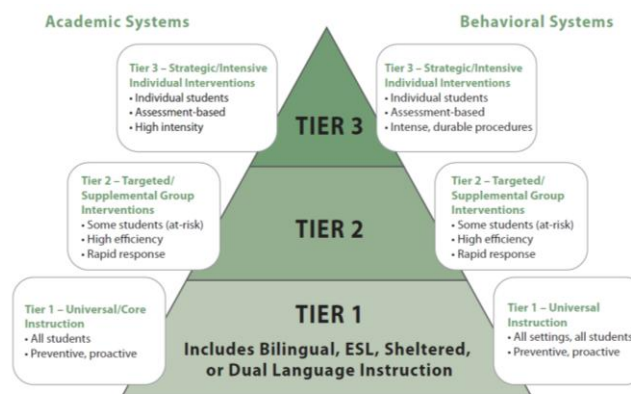
ELs that are not making adequate progress (with language accommodations in place) should also receive additional tiered supports. ELs are required to receive research-based interventions and progress monitoring as Delaware law mandates for all students. The EL teacher should be included in RtI/data meetings concerning ELs.

Tier 2 of a Response to Instruction and Intervention (RtI²) model is referred to as Targeted or Supplemental Intervention. It consists of small groups of students (usually three to five) who do not respond sufficiently to the most effective Tier 1 instruction and curricula. Tier 2 support is viewed as supplementary support because it is delivered within the classroom setting in addition to the core content instruction, in the specific areas in which their needs are not being met.

INSTRUCTION AND INTERVENTION

Tier 3—Intensive Intervention

Tier 3 of a Response to Instruction and Intervention (RtI²) model is referred to as Strategic or Intensive Intervention. This is the most intensive level of support within the general education setting. Tier 3 intervention does not automatically represent referral to special education services. Tier 3 represents strategic or intensive individualized support designed to meet the specific needs of the smallest percentage of students who did not make adequate progress with Tiers 1 and 2. Support at this level is provided by a qualified teacher, generally outside of the classroom setting (but not always) and may be of a longer duration. The strategies may be the same as in Tier 2 but they are more intensive and individualized. If a culturally and linguistically responsive Tier 2 has been created for students, including ELLs, only a small percentage of students would move into Tier 3.



Additional information can be found at:

WIDA (2012). Developing a Culturally and Linguistically Responsive Approach to Response to Instruction and Intervention (RtI²) for English Learners.

http://www.uab.edu/education/esl/images/WIDA_RtI2_forELLs.pdf

Council of the Great City Schools (CGCS; 2012). Common Core State Standards and Diverse Students: Using Multi-Tiered Systems of Support.

<https://www.cgcs.org/cms/lib/DC00001581/Centricity/Domain/87/77--Achievement%20Task%20Force--RTI%20White%20Paper-Final.pdf>

BEST PRACTICES FOR WORKING WITH ELS

Sheltered Instruction

The Sheltered Instruction Observation Protocol (SIOP) Model

SIOP is a research-based and validated instructional model that has proven effective in addressing the academic needs of English learners throughout the United States.

The SIOP Model consists of eight interrelated components:

- Lesson Preparation
- Building Background
- Comprehensible Input
- Strategies
- Interaction
- Practice/Application
- Lesson Delivery
- Review & Assessment

Using instructional strategies connected to each of these components, teachers are able to design and deliver lessons that address the academic and linguistic needs of English learners.

Improving Academic Performance

As the number of English learners increases in schools across the United States, educators are seeking effective ways to help them succeed in K-12 ESL, content area, and bilingual classrooms. Research shows that when teachers fully implement the SIOP Model, English learners' academic performance improves.

In addition, teachers report that SIOP-based teaching benefits all students, not just those who are learning English as an additional language. SIOP instruction also benefits students learning content through another language.

This excerpt was borrowed from the Center for Applied Linguistics. For more information about SIOP visit: <http://www.cal.org/siop/about/index.html>

BEST PRACTICES FOR WORKING WITH ELS

TESOL—6 Principles

6 Principles for Exemplary Teaching of English Learners

TESOL International Association has defined a core set of principles for the exemplary teaching of English learners. The 6 Principles are universal guidelines drawn from decades of research in language pedagogy and language acquisition theory. They are targets for teaching excellence and should undergird any program of English language instruction.

The 6 Principles

1. [Know Your Learners](#)
2. [Create Conditions for Language Learning](#)
3. [Design High-Quality Lessons for Language Development](#)
4. [Adapt Lesson Delivery as Needed](#)
5. [Monitor and Assess Student Language Development](#)
6. [Engage and Collaborate within a Community of Practice](#)



The 6 Principles were developed by a team of language experts. Grounded in research and with contributions and support from educators around the world, the TESOL Board of Directors, and TESOL Staff, these principles are the result of 2+ years of exploration, inquiry, conversation, and collaboration.

The 6 Principles will help educators:

- respect, affirm, and promote students' home languages and cultural knowledge and experiences as resources
- celebrate multilingualism and diversity
- support policies that promote individual language rights and multicultural education
- guide students to be global citizens

For more information about TESOL's 6 Principles visit: <http://www.tesol.org/the-6-principles/>

BEST PRACTICES FOR WORKING WITH ELS

iColorín Colorado!

A bilingual site for educators and families of English Language Learners

Delaware: ELL Resources

<http://www.colorincolorado.org/ell-basics/resources-state/delaware>

Teaching English Language Learners

<http://www.colorincolorado.org/teaching-english-language-learners>

Content Instruction for ELLs including Math, Science, Social Studies, Language Arts, The Arts, and more

<http://www.colorincolorado.org/content-instruction-ells>

ELL Strategies and Best Practices Including Lesson Planning, Differentiation, The Role of Background Knowledge, Assessment and more

<http://www.colorincolorado.org/ell-strategies-best-practices>

Special Education and English Language Learners

<http://www.colorincolorado.org/school-support/special-education-and-english-language-learners>

Special Populations of English Learners including Newcomer, SIFE, Migrant, Refugee, Internationally Adopted Children, and Long-Term ELS

<http://www.colorincolorado.org/ell-basics/special-populations>

BEST PRACTICES FOR WORKING WITH ELS

WIDA

WIDA Consortium is a member-based organization made up of U.S. states, territories and federal agencies dedicated to the research, design and implementation of a high-quality, standards-based system for PreK-12 English language learners.

WIDA's Guiding Principles of English Language Development, Can Do Descriptors

<https://wida.wisc.edu/teach/standards/eld>

Creating a Welcoming Classroom Where Students Feel Included and Engaged

<https://wida.wisc.edu/teach/learners/welcoming-classroom>

Parent Resources Including *My Child Is an ELL: A Parent's Guide*

<https://wida.wisc.edu/sites/default/files/resource/My-Child-is-an-ELL-Flyer-English.pdf>

Founding Member of the WIDA Consortium since 2003

<https://wida.wisc.edu/memberships/consortium/de>

BEST PRACTICES FOR WORKING WITH ELS

Supporting Comprehension

for Upper Elementary and Beyond

Supporting Comprehension Strategies for English Language Learners in Grades 6-12

<http://www.readwritethink.org/professional-development/strategy-guides/supporting-comprehension-strategies-english-30106.html>

Supporting Vocabulary Strategies for English Language Learners in Grades 6-12

<http://www.readwritethink.org/professional-development/strategy-guides/supporting-vocabulary-acquisition-english-30104.html>

Using Pictures to Build Schema for Social Studies Content

<http://www.readwritethink.org/classroom-resources/lesson-plans/using-pictures-build-schema-1059.html>

Teacher Read-Aloud That Models Reading for Deep Understanding

<http://www.readwritethink.org/professional-development/strategy-guides/teacher-read-aloud-that-30799.html>

Reading Comprehension for English Language Learners

<http://www.ascd.org/ascd-express/vol5/511-breiseth.aspx>

Increasing ELL Student Reading Comprehension with Non-Fiction Texts

<http://www.readingrockets.org/article/increasing-ell-student-reading-comprehension-non-fiction-text>

English Learners with Disabilities (SwD/EL)

ENGLISH LEARNERS WITH DISABILITIES

Entrance Procedures for All Students

All students registering in a Delaware public school must follow the same requirements including the Home Language Survey and records review process. If a student has an IEP or 504 plan or is suspected to have a disability the school should refer the student file to educational diagnostician to review IEP/504 accommodations. The student may be assessed in one of three ways as requiring English learner supports. The identification process must be complete within 25 days of enrollment.

1. Student can meaningfully participate in the traditional English language proficiency screener without accommodations.
2. Student can meaningfully participate in the traditional English language proficiency screener with accommodations. The educational diagnostician and English learner specialist should complete the applicable WIDA accommodations sheet. This can be found in the *Accessibility and Accommodations Supplement* at <https://wida.wisc.edu/assess/accessibility>
3. If the student is unable to meaningfully participate in the traditional screener with accommodations, the student can be assessed using the DE Alternative English Learner Identification Protocol. See page 33 of this Guidebook for more information about the DE Alternative EL Identification Protocol. You can also find this document in Appendix F of this Guidebook on pg. 171.

English learners that have a disability (SwD/EL) should receive BOTH language and disability-related services.

ENGLISH LEARNERS WITH DISABILITIES

English Language Service Discussion for English Learners with Disabilities Form

Delaware's *English Learner Service Discussion for English Learners with Disabilities* form should be completed annually for all dually-identified students. This form should be completed by an EL teacher or designee that has knowledge of a student's language needs. The form should be a collaborative planning between special educators, EL specialists, and additional team members in order to best meet the linguistic needs of the student. While this form is not part of the official IEP document itself, it does serve as information that must be present in the IEP for students identified as English learners. This form is to be updated annually to ensure that a student can return to a less restrictive placement at any time.

This form documents:

- Primary language or communication mode
- Explanation of educational options and appropriateness of each placement choice
- Information that teachers/specialists will need to accommodate for language needs
- Accessibility of academic instruction, services, and extracurricular activities
- Service decisions for both direct and indirect services

More information about English learners with Disabilities including *Guidance* and the *English Language Service Discussion for English Learners with Disabilities* Form can be found in the Appendix as well as <https://www.doe.k12.de.us/Page/3688>

ENGLISH LEARNERS WITH DISABILITIES

English Learners with an Individualized Education Plan (IEP)

Schools should inform parents/guardians of English learners with an Individualized Education Plan (IEP) how the language instruction education program meets the objectives of the child's IEP. IDEA requires schools to take whatever action is necessary to make sure that parents understand the proceedings of the IEP team meeting, including arranging for an interpreter for parents whose native language is other than English.

To ensure that an individualized plan for providing special educator or disability-related services addresses the language-related needs of a SwD/EL, it is important for a team to design a plan including all participants that are knowledgeable about the student's language needs.

English Learner services should be decided in collaboration with the parent and all educators working on language and/or communication. The continuum of services may include direct and/or indirect services.

Direct:

- Participation in regular education English Learner programs with accommodations and supports
- Specially designed pull-out or push-in support provided by an EL teacher

Indirect:

- Specialized supports with services to develop language and communication
- Consultative services provided by the EL specialist in partnership with the classroom teacher and other specialists as appropriate

ENGLISH LEARNERS WITH DISABILITIES

Documenting within the Individualized Education Plan (IEP) for English Learners

For an identified English Learner the following information should be present in the IEP:

Data Considerations

- b) Other Factors to Consider—Check Language Needs for Students with Limited English Proficiency
- c) Multiple Data Sources in Box 3—Include Screener and/or Annual Assessment at the domain and composite level and any additional classroom based assessments used to measure language acquisition

Goals

- d) Accommodation Section—Include any necessary accommodations or supports based on English Language needs that will support the student in meeting their IEP goals

The following information **SHOULD NOT** be included in the English Learner supports section in the IEP, as the IEP addresses the disability and not the language needs of an English Learner.

- e) Services, Aides or Modifications related to English Language Development
- f) Present Level of Educational Performance related to English Language Development
- g) Benchmarks and Annual goals related to English Language Development
- h) Extended School Year for English Language Development

English learners with disabilities follow the same criteria for exit as all learners in the State of Delaware:

- All students taking the ACCESS for ELLs 2.0 with or without accommodations must obtain a 4.7 in order to be eligible to exit
- Alternate ACCESS for ELLs for students in grades 1-12 who have significant cognitive disabilities and take the alternate content assessment can be eligible for exit with an Alternate ACCESS proficiency level of A3 Engaging or higher.

ACCESS for ELLs 2.0 Annual Assessment

WIDA'S ACCESS FOR ELLS 2.0

All districts and charters must annually assess the English proficiency of all English learners using the ACCESS for ELLs 2.0 or the Alternate ACCESS. Assessment must include those students who have opted-out of an English language assistance program. The annual ACCESS test is required until students achieve proficiency. The Annual ACCESS test window, as well as administrative checklists and other information about testing can be found on the Delaware WIDA page at <https://wida.wisc.edu/memberships/consortium/de>

The ACCESS test will be administered online for grades 1-12

Grade Level(s)	Annual Assessment	Listening, Reading, & Speaking	Writing
K	ACCESS for ELL's 2.0	Paper Version	Paper Version**
1-3	ACCESS for ELL's 2.0	Online	Paper Version
4-5	ACCESS for ELL's 2.0	Online	Online
6-8	ACCESS for ELL's 2.0	Online	Online
9-12	ACCESS for ELL's 2.0	Online	Online

Sample test questions can be found at <https://wbte.drcedirect.com/WIDA/portals/wida>

*The Delaware Department of Education requires ELs to take the online version in Grades 1-12 unless the paper version is needed as an accommodation. A district must submit a KACE Help Desk ticket through their district or charter test coordinator for permission.

**Kindergarten and Alternate ACCESS will remain paper-based.

***Please note: All identified English Learners must be assessed annually during WIDA's ACCESS for ELLs 2.0 testing window, regardless of their date of enrollment and date of placement screener, until they have met proficiency level exit criteria.**

ALTERNATIVE ACCESS FOR ELLS

Alternate ACCESS for ELLs

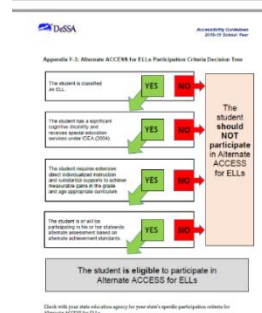
Alternate ACCESS is a large-print, paper-based test individually administered to students in Grades 1-12 who are identified as English language learners (ELLs) with significant cognitive disabilities. It is designed for ELLs who have disabilities that prevent them from meaningfully participating in ACCESS for ELLs Online or Paper.

Alternate ACCESS tests student's language in four domains: **Listening, Reading, Speaking, Writing**. Test scores can be used to inform instruction and monitor progress of ELLs in a school or district.

An IEP team decides whether students who are classified as ELs with significant cognitive disabilities will participate in the Alternate ACCESS for ELLs. The following participation criteria must be met to administer the Alternate ACCESS for ELLs to a student:

- The student is classified as an English learner
- The student has significant cognitive disabilities and receives special education services under IDEA
- The student requires extensive direct individualized instruction and substantial supports to achieve measurable gains in the grade and age appropriate curriculum
- The student is or will be participating in the statewide alternate assessment based on alternate achievement standards

*If any of these conditions are not met, the student should NOT participate in the Alternate ACCESS for ELLs. See Appendix for Alternate ACCESS ELLs Participation Criteria Decision Tree.



**Once a student has graduated, or if the student has an IEP and has met the academic requirements to graduate but are continuing their education beyond grade 12 (possibly in Project SEARCH), they are no longer considered ELs by state definition and will not need to take the annual ACCESS assessment. Please note that a student may still have language needs and should be supported accordingly. If a student continues to appear in the English Learner Database, the district EL Coordinator should send a letter to the DDOE formally requesting the reason for removal from the state database.

English Learner Exit

EXIT CRITERIA FOR ENGLISH LEARNERS

ELs must meet the Delaware State mandated criteria to exit the EL Education Program. ELs are assessed annually and are exited based on WIDA's ACCESS for ELLs 2.0. The specific exit criteria are listed below. Once a student has met the required exit criteria, a Parent Notification Letter must be sent to notify parents that their child no longer qualifies for EL services.

Grades K-12 ACCESS for ELLs 2.0	Alternate ACCESS
Composite Proficiency Level of 4.7 or greater	Composite Proficiency Level of A3 Engaging or higher

Once a student has reached a composite proficiency of 4.7 or greater on ACCESS for ELLS 2.0 or A3 Engaging or higher on Alternate ACCESS, the student will be exited as an English Learner in the database and will move to post-transition monitoring. The transition will occur automatically within the EL Database located on IMS after the student has rolled over into the next grade level.

A Parent Notification of Exit sample is available in English in the Appendix. In addition, samples of Parent Notification of Exit Letters in multiple languages can be found at

<https://www.doe.k12.de.us/Page/2373>

POST-TRANSITION MONITORING

After students have exited an EL program, schools must monitor the academic progress of former EL students for at least two years to ensure that: the students have not been prematurely exited; any academic deficits they incurred as a result of participation in the EL program have been remedied; and they are meaningfully participating in the standard instructional program comparable to their never-EL peers.

Two-Year (Post-Transition) Monitoring

All exited students should be monitored for two academic years before formally exiting the program. Documentation of the monitoring process is entered into the statewide English learner database. A review of the following items can provide evidence of academic progress:

- Report card grades
- Standardized test scores
- Classroom work samples
- Writing samples

If during the two-year monitoring period, an exited student is still hindered by his/her English language proficiency, additional supports should be provided. When a school's monitoring of an exited EL student identifies a persistent language barrier or academic deficit, schools should re-test the student with an approved Delaware screener. If the results of the re-testing qualify the student as an EL, the school should re-enter the student into EL status and offer EL services. If the student is re-entered into EL services, schools should document the bases for the re-entry and the parents' consent. A student who is in question for re-entry must be screened with a DE Approved Screener before being placed back into an EL Program as per the Office of Civil Rights. The new screening data will be entered into the EL Database as an additional screener. If a student meets the criteria for an EL, parents must be notified. See next page for guidance on what considerations should be made prior to re-entry in an EL program.

POST-TRANSITION MONITORING

Students with Potential Re-Entry into the EL Program

There may be an exited EL student who, after consistent school monitoring, is still showing persistent language barriers and/or academic deficits. Schools maintain an obligation to follow the guidance listed below before re-entry into the program. It is essential for school teams to show that they are working on a variety of alternatives prior to re-entry of an exited EL into the EL Program.

If an exited EL student is showing language and/or academic deficits, schools should:

1. Provide additional supports through school personnel, including, but not limited to, EL teacher, Classroom teacher, Reading or Curriculum Specialist
2. Provide scaffolds to support language and content
3. Meet as a collaborative team to make data-driven decisions for the student
4. Follow the Response to Intervention (RtI) or Multi-Tiered Systems of Support (MTSS) process to provide multi-tiered systems of supports, targeting the student's need both in Tier 1 Core Instruction and Tier 2 and/or 3 interventions as necessary (See Instruction and Intervention section in this Guidebook on pages 55-56.)
5. Enter all supports from above into the monitoring data sections within the EL Database
6. If the student continues to struggle, the team should decide if they believe a language barrier is still present
7. If the team decides that a student should be a candidate for re-entry into an EL Program, the student must be re-screened with a DE Approved Screener and entered into the EL Database. (This will be entered as an additional screener.)
8. Parents must be notified and re-entry data and notification must be kept in the student's cumulative record.

Student Growth and School Accountability

STUDENT GROWTH TARGETS

Every Student Succeeds Act (ESSA)

Every Student Succeeds Act (ESSA) maintains the requirement to have English language proficiency standards aligned with state academic standards. Under this accountability system, states must establish “ambitious State-designed long term goals” to measure interim progress for all students and subgroups of students, including progress in achieving English language proficiency (ELP).

Individual Growth Targets

The purpose of EL ACCESS Growth Targets is to measure student development and attainment of English proficiency while meeting challenging state academic content standards.

- Student growth targets are individual and allow for a variable growth trajectory of language acquisition.
- Growth targets are set based on an individual student’s first annual ACCESS results (on or after 2017 when baselines were initially established)
- Growth targets are reset annually and are calculated to show the growth needed to achieve ELP within the student’s allowable plan years (3-6years)
- A student’s number of plan years is based upon baseline ELP (ex: A student who scores 4.6 on their baseline ACCESS will have a maximum 3 years to attain ELP, whereas a student who scores 1.9 on their baseline ACCESS will have a maximum of 6 years to attain ELP).

See chart on the next page for more information.

SCHOOL ACCOUNTABILITY UNDER ESSA

EL ACCESS Growth Targets—Annual Calculation Method

AT=attainment target (year)

Year 1 Baseline ACCESS PL	Year 2	Year 3	Year 4	Year 5	Year 6
4.7 or higher					
4.0-4.9	SS progress from Year 1 to AT divided by 2	SS for 4.7 two grades out			
3.9-3.9	SS progress from Year 1 to AT divided by 3	SS progress from Year 2 to AT divided by 2	SS for 4.7 three grades out		
2.0-2.9	SS progress from Year 1 to AT divided by 4	SS progress from Year 2 to AT divided by 3	SS progress from Year 3 to AT divided by 2	SS for 4.7 four grades out	
1.0-1.9	SS progress from Year 1 to AT divided by 5	SS progress from Year 2 to AT divided by 4	SS progress from Year 3 to AT divided by 3	SS progress from Year 4 to AT divided by 2	SS for 4.7 five grades out

School Accountability

- In the English Language Proficiency growth measure, the maximum number of years that students have to attain (ELP) is six years, with a minimum of 3. This is dependent upon the student's baseline proficiency level which is set with the student's first annual ACCESS assessment, on/after 2017.
- The English Language Proficiency indicator is a part of school-level accountability for all schools with 15(n) or more students in the subgroup.
- Students who have demonstrated English language proficiency and who exit from EL status will remain in the English learner subgroup for both the academic achievement and progress indicators for four additional years.

For additional information about Delaware's Accountability Framework visit:

<https://www.doe.k12.de.us/domain/468>

TITLE III RECIPIENTS AND SUBGRANTEES

Title III Recipients

The U.S. Department of Education's (USED's) Title III, Part A grant provides supplemental funds to help support English learners (ELs) and immigrant students. Title III funds are not intended to be the sole source of financial support for EL and immigrant students. Local education agencies (LEAs) are expected to use state and local funds to meet their civil rights obligations to EL and immigrant students, but Title III funds can provide additional support to help such students learn English and meet state academic standards. LEAs may also use funds from other federal programs, such as Title I, to support EL and immigrant students.

Required Subgrantee Activities for Title III, Part A funds must be used to support identified English Learner (EL) students. An EL student is a student:

- Who is aged 3 through 21
- Who is enrolled or preparing to enroll in an elementary school or secondary school
- Who meets one of the following three criteria:
 - * Was not born in the United States or whose native language is other than English
 - * Is a Native American or an Alaska Native, or a native resident of the outlying areas and comes from an environment where a language other than English has had a significant impact on the individual's level of English language proficiency (ELP)
 - * Is migratory, whose native language is a language other than English, and who comes from an environment where a language other than English is dominant
- Whose difficulties in speaking, reading, writing, or understanding the English language may be sufficient to deny the individual:
 - *The ability to meet the challenging state academic standards
 - * The ability to successfully achieve in classrooms where the language of instruction is English
 - *The opportunity to participate fully in society (Elementary and Secondary Education Act (ESEA) Section 8101(20)).

TITLE III RECIPIENTS AND SUBGRANTEES

LEAs must use Title III funds for effective approaches and methodologies for teaching EL and immigrant students (ESEA Section 3115(a)). LEAs that receive Title III, Part A funds must spend those funds on the following three activities:

1. To increase the ELP of ELs by providing effective language instruction educational programs that meet the needs of ELs and demonstrate success in increasing:
 - a) English language proficiency
 - b) Student academic achievement (ESEA Section 3115(c)(1))
2. To provide effective professional development to classroom teachers (including teachers in classroom settings that are not the settings of language instruction educational programs), principals, administrators, and other school or community-based organizational personnel, that is:
 - a) Designed to improve the instruction and assessment of ELs
 - b) Designed to enhance the ability of such teachers, principals, and other school leaders to understand and implement curricula, assessment practices and measures, and instruction strategies for ELs
 - c) Effective in increasing children's ELP or substantially increasing the subject-matter knowledge, teaching knowledge, and teaching skills of such teacher
 - d) Of sufficient intensity and duration, which shall not include activities such as one-day or short-term workshops and conferences, to have a positive and lasting impact on the teachers' performance (ESEA Section 3115(c)(2)).
3. To provide and implement other effective activities and strategies that enhance or supplement language instruction educational programs for English learners, which:
 - a) Shall include parent, family, and community engagement activities
 - b) May include strategies that serve to coordinate and align related programs (ESEA Section 3115(c)(3))

DeSSA Content Assessments and Accessibility

STATEWIDE CONTENT ASSESSMENTS

Delaware System of Student Assessments (DeSSA)

English learners are required to participate in all statewide content assessments with all students. Students may be entitled to designated supports as outlined in the DeSSA Accessibility Guidelines for DDOE. English learners who have an IEP or 504 may also be entitled to certain accommodations. More information can be found at <https://www.doe.k12.de.us/Page/2138> Below are assessments that are required for all learners in Delaware and the grade level of administration.

Grade 3	SBAC ELA/PT; SBAC Math/PT; DeSSA-Alt
Grade 4	SBAC ELA/PT; SBAC Math/ PT; DeSSA-Alt; DeSSA Social Studies
Grade 5	SBAC ELA/PT; SBAC Math/ PT; DeSSA-Alt; DeSSA Science (Alt)
Grade 6	SBAC ELA/PT; SBAC Math/ PT; DeSSA-Alt
Grade 7	SBAC ELA/PT; SBAC Math/ PT; DeSSA-Alt; DeSSA Social Studies
Grade 8	SBAC ELA/PT; SBAC Math/ PT; DeSSA-Alt; DeSSA Science (Alt); Optional PSAT
Grade 9	Optional PSAT
Grade 10	DeSSA Science (Biology); DeSSA Science-Alt; PSAT 10
Grade 11	DeSSA-Alt; DeSSA Social Studies; SAT School Day
Grade 12	SAT (for students who didn't take SAT in Grade 11)
All Grades	WIDA ACCESS for ELLs 2.0 for all identified English learners (annually)

DeSSA=Delaware System of Student Assessments

SBAC= Smarter Balanced Assessment Consortium

ELA=English Language Arts **PT**=Performance Task

Alt=Alternative Assessments (See following pages for more information)

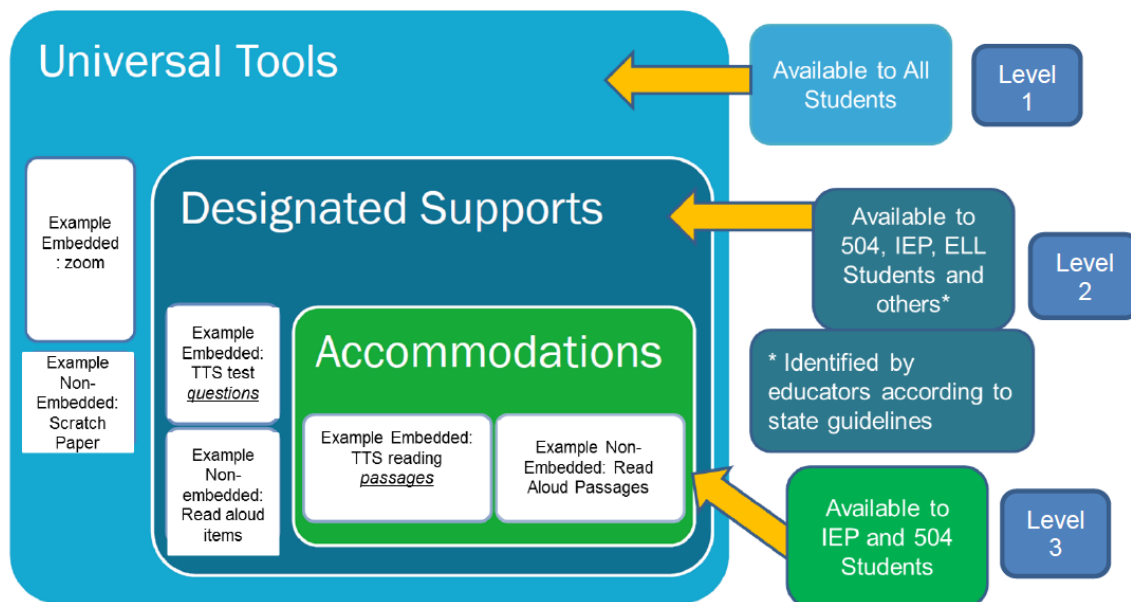
PSAT=Preliminary SAT **SAT**=Scholastic Achievement Test

STATEWIDE CONTENT ASSESSMENTS

Accessibility Levels Available for Statewide Content Assessments (DeSSA)

Most supports and accommodations that are used by students in the classroom and needed on assessments are generally permitted as long as they do not change the construct of the test, thus invalidating the test score. Accommodations should only be used on assessments when they have been regularly used in the classroom. DDOE tracks accommodations to monitor selection and support access for students.

English learners (ELs) and SwD/EL (students who meet the criteria for a student with a disability and an English Learner) are entitled to different levels of support during statewide assessments. Embedded accommodations and supports are delivered within the online system (ex: text to speech) and non-embedded accommodations and support are provided by the school (ex: translator, preferential seating).



This table was borrowed from *Accessibility Guidelines for DeSSA* pg.10
<https://www.doe.k12.de.us/Page/2138>

STATEWIDE CONTENT ASSESSMENTS

Level 1-- Universal Tools/Features (Available to All)

Universal tools are features or preferences that are built into the assessment system and are available to all students. These are not classified as supports or accommodations. Level 1 embedded features are in TIDE by default and therefore will not be entered in. Non-embedded tools can be entered into TIDE and provided externally by the test administration.

Level 1 Universal Tools are not required to be completed on the accommodations form or entered into DeSSA TIDE, however a team may choose to complete this to ensure an individual student receives the feature(s) during testing.

Level 2--Designated Supports (Available to EL, SwD, SwD/EL, General Education Students)

A small number of students may require additional features on an assessment. Level 2 features are available to English learners (ELs) and English learners with an IEP or 504 plan (SwD/EL). These are also available to general education students who have been determined to need extra supports. Embedded supports are part of the testing interface and are enabled by entering the appropriate information into TIDE. Non-embedded supports are not part of the student testing interface and test administrations will provide these locally. (More information can be found at <https://www.doe.k12.de.us/Page/2138> Appendix A-1 and A-2 of the Accessibility Guidelines)

Level 2 Designated Supports must be entered on to the Accessibility Form and into DeSSA TIDE for the student to receive the support.

STATEWIDE CONTENT ASSESSMENTS

Level 3—Accommodations (Available to SwD or SwD/EL)

Some students may need additional testing accommodations to access an assessment and show what they know. Level 3 Accommodations are only available to English learners who also have an IEP or 504 plan. The accommodations must be familiar to the student and used in the classroom to support instruction. The accommodations should provide equitable access to the assessment, but should not reduce the performance expectations, change the construct of what is being assessed, or compromise the integrity of validity of the assessment.

Level 3 Accommodations must be entered on to the Accessibility Form and into DeSSA TIDE for the student to receive the accommodation.

Recently Arrived Exemption for DeSSA ELA/SAT

An English Learner may qualify for an exemption on the DeSSA ELA or SAT if they have recently arrived in the United States and are within their first year of school enrollment. An EL is considered to be in the first year of enrollment in U.S. schools if the student's immigrant date is less than one year from the last day of the DeSSA ELA test window, SAT test day, or DeSSA-Alt ELA test window (whichever test the student is to take). Students who have transitioned or exited are NOT eligible for an exemption. This exemption is NOT available for math and/or other content areas outside of the DeSSA ELA, DeSSA-Alt ELA, or SAT.

*EL 1st year Exemption must be completed on the Accessibility Form **and** entered into DeSSA TIDE. The Accessibility Form for exemption can be found in Appendix A-1 under Level 2: Designated Supports (Non-Embedded) at <https://www.doe.k12.de.us/Page/2138>*

STATEWIDE CONTENT ASSESSMENTS

DeSSA-Alternate Assessment (DeSSA-Alt)

The DeSSA-Alt is the primary assessment for students with the most significant cognitive disabilities. A student's IEP team must ensure that the student meets all eligibility criteria found in the DeSSA-Alt Participation Guidelines. SwD/EL must be an identified EL and meet eligibility criteria for DeSSA-Alt to be considered for participation.

Accommodations and support decisions for EL students must be made on an individual basis and must be based only on the following:

- information regarding the student's English Language Proficiency
- information regarding any student disabilities
- scores from student evaluations and assessments
- student's formative classroom evaluation information
- documented student observation
- documented student preference

Accommodations and support decisions for EL students must NOT be made based on any of the following:

- a student's membership in a particular demographic group,
- a particular label that applies to a student, or
- concerns external to the student such as
- school or district staffing issues,
- cost to the district of providing the accommodation or support; or
- other logistic or political concerns.

STATEWIDE CONTENT ASSESSMENTS

IEP or 504 and the EL instructional teams should work cohesively to ensure the most informed and appropriate testing accommodations for the student. Students who are dually identified SwD/EL but are withdrawn from EL services by parent/guardian are still eligible to receive EL accommodations. Teachers should not assign supports on a blanket basis and must understand that more supports are not necessarily better for the student. Support selection should be customized to the student's needs and more than one educator should participate in identification of students who need support as well as the selection of supports for the student.

All accommodations should be entered into the appropriate database prior to March 1. Accommodations should also be verified in DeSSA TIDE prior to launching a student test and then verified again in the test administrator interface. (SAT exemptions are entered through District Test Coordinators.)



Delaware Department of Education's Accessibility Guidelines

For more information on the accessibility features, policies, and procedures for DeSSA, DeSSA-Alt, WIDA, and SAT assessments, review the *Accessibility Guidelines* available at DDOE's at <https://www.doe.k12.de.us/Page/2138>

Community and Family Engagement

COMMUNICATION WITH PARENTS

Schools have an obligation to ensure meaningful communication with EL Parents in a language they can understand. Schools must adequately notify EL parents of information about any program, service, or activity of a school that is called to the attention of non-English learner parents.

At the school and district levels, this essential information includes but is not limited to information regarding:

• language assistance programs	• parent-teacher conferences
• special education and related services	• parent handbooks
• IEP meetings	• gifted and talented programs
• grievance procedures	• magnet and charter schools
• notices of nondiscrimination	• other school/program choice options
• registration and enrollment	• report cards
• student discipline policies and procedures	• requests for parent permission for student participation in activities

School districts must determine which parents require communication in a language other than English as indicated by the Home Language Survey or other means. It is the responsibility of the school district to make sure that information is given to parents in a language that they can understand, regardless of the proficiency level of their learner.

FAMILY AND COMMUNITY ENGAGEMENT

The State of Delaware is committed to empowering every English learner to be successful in college, career and life. Every English learner will engage in the highest-quality education to prepare them with the linguistic, cultural and academic skills necessary for the 21st century. In order to help our English learners achieve academic success, we must also engage English Learner families and the community as our partners in education. Under Delaware's English Learner Strategic Plan, schools are encouraged to mobilize the community and engage the public to support English learners. Delaware identifies four objectives for educational partnerships:

- Improve engagement with families of ELs
- Increase partnerships with community organizations and state agencies to respond to the needs of EL families, including socio-emotional, health, and nutrition
- Increase community awareness of the value-added benefits of multilingualism that ELs bring to Delaware
- Increase community advocacy to influence EL Delaware public policy and inform resource investment



Resources for Building Educational Partnerships

Delaware's English Learner Strategic Plan: Empowering Every English Learner

<https://news.delaware.gov/files/2017/12/DE-ENGLISH-LEARNER-STRATEGIC-PLAN-2022.pdf>

A Guide for Engaging ELL Families: Twenty Strategies for School Leaders

http://www.colorincolorado.org/sites/default/files/Engaging_ELL_Families_FINAL.pdf

Getting to Know your ELLs: Six Steps for Success

<http://www.colorincolorado.org/article/getting-know-your-ells-six-steps-success>

Appendix

APPENDIX

- A. Home Language Survey
- B. Records Review Process
- C. Parental Notifications of EL Status in English Learner Programs:
- D. Student with Interrupted Formal Education (SIFE)
- E. English Language Acquisition Plan (ELAP)
- F. Delaware Alternate Identification Protocol
- G. English Language Service Discussion for English Learners with Disabilities Form

Appendix A

Home Language Survey

**DEPARTMENT OF EDUCATION**

Townsend Building
401 Federal Street Suite 2
Dover, Delaware 19901-3639
DOE WEBSITE: <http://www.doe.k12.de.us>

Susan S. Bunting, Ed.D.

Secretary of Education

Voice: (302) 735-4000 FAX: (302) 739-4654

Delaware Department of Education Home Language Survey**Date:** _____**School:** _____

The Delaware Department of Education requires schools to determine the language(s) spoken at home by each student. The information provided will only be used to determine whether your student is eligible to begin the English as a Second Language process and will not be used for immigration matters or reported to immigration authorities.

Student Information

First Name:		Country of birth:	
Last Name:		Date of entry in the US:	
Birthdate:		Date student first enrolled in a US school:	

Circle grades your child attended in US schools

PK K 1 2 3 4 5 6 7 8 9 10 11 12

How many total months has the student been enrolled in a US school? _____**1. What language did your child first learn?**

Language: _____

Dialect: _____

2. What language does your child most often use at home?

Language: _____

Dialect: _____

3. What languages do you most often speak to your child?

Language: _____

Dialect: _____

4. What language(s) other than English are spoken in your home?

Language: _____

Dialect: _____

5. What language would you prefer to receive information from your school?

Language: _____

Dialect: _____

Parent Name_____
Parent Signature_____
Date

LEA : Please have all families complete this home language survey at the student's initial enrollment in school. This form must be signed and dated by the parent or guardian and kept in the student's file. (If a language other than English or Non-US English is listed on questions 1-3, the LEA must continue with a records review, step 2 of the English learner identification process.)

Appendix B

Records Review Process

Student Name _____ Enrollment Date _____

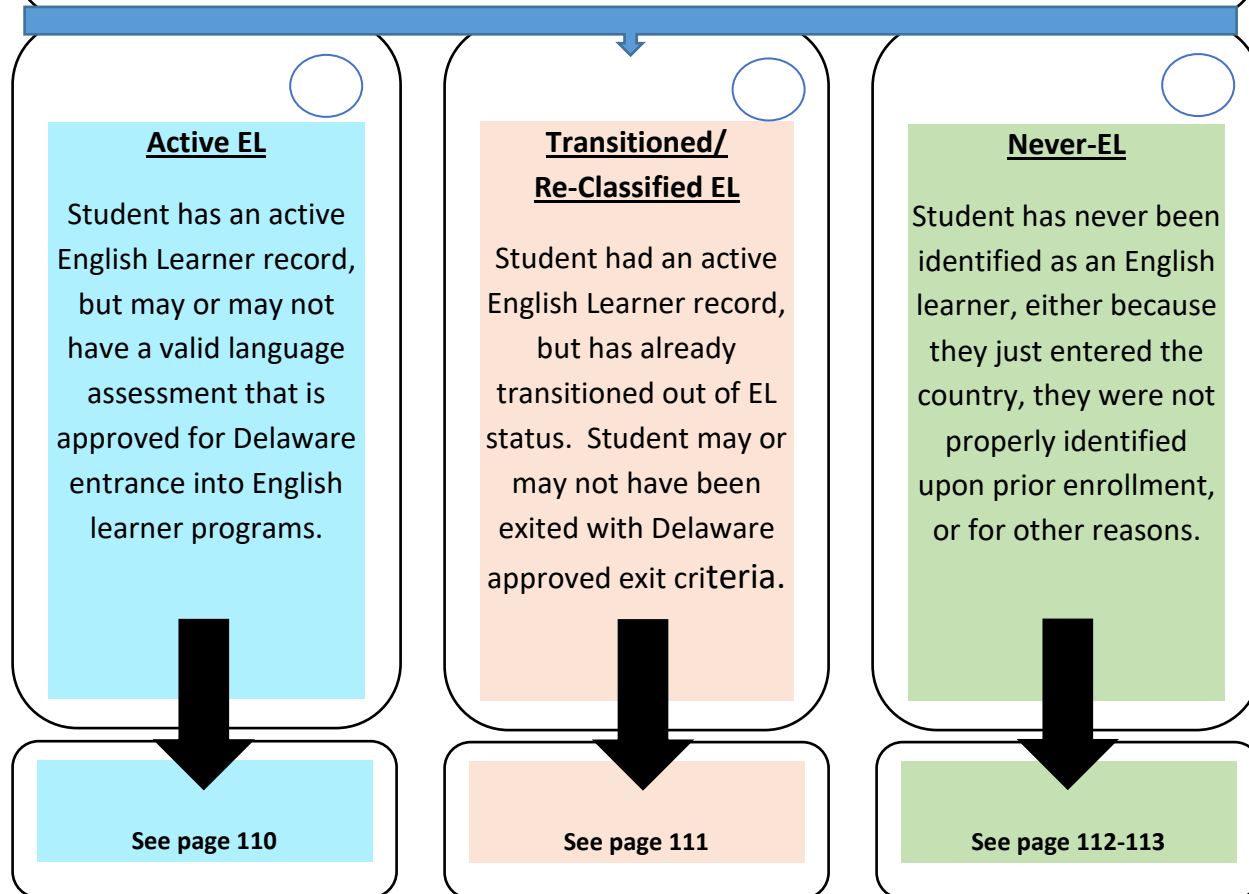
Person Completing this Records Review _____ Date _____

Delaware's Records Review Process

When a student has language other than English in questions 1-3 of the Home Language Survey, use the Records Review process to determine if the student needs further English learner testing or programming.

During the records review process, determine whether the student is an **Active EL**, a **Transitioned or Re-classified EL**, or is **Never EL**.

See the appropriate page number for more information about these situations and determine whether or not you will need to administer a Delaware approved screener (WIDA Screener Kindergarten, WIDA Screener or Delaware Alternative EL Identification Protocol)



****Please note: Current and valid language assessment refers to a Delaware approved screener (K WIDA Screener, WIDA Screener) or language assessment (ACCESS) within the last 12 months.**

Student Name _____ Enrollment Date _____

Person Completing this Records Review _____ Date _____

Active EL: Student has an active English Learner record, but may or may not have a valid language assessment that is approved for Delaware entrance into English learner programs.

Use a check in the far right column to indicate the description of entrance that matches the student. When it is determined that a screener must be administered, complete the form and file it with the screening results in the student's cumulative record. If it is determined that a screening does not need to be administered, the reason or any other important information should be noted on this form and this form must be maintained in the student's cumulative record.

Entrance Description	Screener Needed?	Actions	✓
<u>NON-WIDA STATE TRANSFER</u> An English learner transfers in from a non-WIDA state and does not have a Delaware approved screening tool (K WIDA Screener, WIDA Screener or DE Alternative EL Identification Protocol).	YES a Screener is needed	The school administers a Delaware approved screening tool, enters the screening data into the EL Database, and maintains the screening date in the cumulative record.	
<u>WIDA TRANSFER</u> An English learner transfers in from a WIDA State with a valid language assessment within the last 12 months (K MODEL, WIDA Screener or ACCESS).	NO a Screener is NOT needed	A screening tool is not necessary since there is a valid language assessment within the last 12 months. The school enters assessment data into the EL Database and maintains the score reports along with this form in the student's cumulative record. See page 34 for more information on how to enter scores into the EL Database as <i>Out of State Scores</i> in lieu of screener.	
<u>IN-STATE TRANSFER</u> An English learner transfers in from another Delaware school with a DE approved screener or ACCESS assessment within the last 12 months.	NO a Screener is NOT needed	A screening tool is not necessary if there is a DE approved language assessment within the last 12 months. All records should appear in the EL Database when the student is enrolled in the new school. Records should be maintained in the student's cumulative record.	
<u>NO APPROPRIATE DATA FOUND</u> An English learner transfers in, but the student's records are unavailable, or not sent from the prior school within 25 days of enrollment, or a student does not have a current and valid language assessment within the last 12 months, including a student who was previously an EL in Delaware, but has transferred back in without a current and valid language assessment	YES a Screener is needed	A screening tool is necessary if documentation of English proficiency is not available or if the transferring school has not provided it in a timely manner. Results of the new screening data, along with this form must be maintained in the student's cumulative record. Results should be entered into the EL Database as new screening data and student must meet DE entrance criteria as an English learner.	

Student Name _____ Enrollment Date _____

Person Completing this Records Review _____ Date _____

Transitioned/Re-Classified EL: Student had an active English Learner record, but has already transitioned out of EL status. Student may or may not have been exited with Delaware approved exit criteria. (*Re-classification is the process in which a student is reclassified as Fully English Proficient. The terms “transitioned” and “re-classified” both indicate the student is no longer identified as an English learner because the student has met English proficiency.)

Use a check in the far right column to indicate the description of entrance that matches the student. When it is determined that a screener must be administered, complete the form and file it with the screening results in the student’s cumulative record. If it is determined that a screening does not need to be administered, the reason or any other important information should be noted on this form and this form must be maintained in the student’s cumulative record.

Entrance Description	Screener Needed?	Actions	✓
<u>RE-CLASSIFIED ENGLISH LEARNER</u> A student who was an English learner in another state, has since transitioned out, but still meets the exit criteria for Delaware (4.7 or greater for ACCESS or A3 or greater for Alternative ACCESS.) If student does not meet criteria for DE exit, see below.	NO a Screener is NOT needed	If the student has transitioned out of an English learner program with a score of 4.7 or greater (or A3 or greater for ALT) a screener is not necessary. The student’s scores will be entered into the EL Database and ACCESS records will be maintained in the student’s cumulative record. See page 34 for more information on how to enter scores into the EL Database as <i>Out of State</i> Scores in lieu of screener.	
<u>RE-CLASSIFIED ENGLISH LEARNER</u> A student who was an English learner in another state, has since transitioned out, but DOES NOT meet the exit criteria for Delaware (4.7 or greater for ACCESS or A3 or greater for Alternative ACCESS) and has current and valid ACCESS results that can be used in lieu of a screener (within the last 12 months.) *If no ACCESS data is available from within the last 12 months, see below for No Assessment Data.	NO a Screener is NOT needed	If the student has transitioned out of an English learner program in another state, but does not meet Delaware’s exit criteria with a score of 4.7 or greater (or A3 or greater for ALT), the student will be entered as an English learner. A screener is not necessary if ACCESS reports are available from within the last 12 months. The student’s scores will be entered into the EL Database and will classify the student as an English learner. Records will be maintained in the student’s cumulative record. See page 34 for more information on how to enter scores into the EL Database as <i>Out of State</i> Scores in lieu of screener.	
<u>NO ASSESSMENT DATA</u> A student who does not have a DE approved assessment (ACCESS or WIDA Screener) within the last 12 months, regardless of whether they do or do not meet exit criteria for Delaware, must be rescreened to determine a current level of English proficiency.	YES a Screener is needed	If the student has transitioned out of an English learner program in another state, but does not meet Delaware’s exit criteria with a score of 4.7 or greater (or A3 or greater for ALT), the student will be entered as an English learner. If the student does not have a valid assessment from within the last 12 months, screen the student to get a current English Language Proficiency level and enter the results into the EL Database. The new screener scores will be entered in as an additional placement screener and the scores will determine whether or not the student qualifies for EL Programming. Assessment results must be maintained in the student’s cumulative record.	

Student Name _____ Enrollment Date _____

Person Completing this Records Review _____ Date _____

Never-EL: Student has never been identified as an English learner, either because they just entered the country, they were not properly identified upon prior enrollment, or for other reasons.

The following indicators will be reviewed. See indicators below, as well as the appropriate actions for screening, proceeding, and/or finalizing the Records Review.

Indicator 1: The student has never been classified as an English language learner and has been attending an English-language, U.S. school for three or more consecutive years; or was screened previously and determined ineligible.

Indicator 2: The student tested proficient on the English language arts Delaware state assessment in English during the most recent administration.

Use a check in the far right column to indicate the description of entrance that matches the student. When it is determined that a screener must be administered, complete the form and file it with the screening results in the student's cumulative record. If it is determined that a screening does not need to be administered, the reason or any other important information should be noted on this form and this form must be maintained in the student's cumulative record.

Indicator	Entrance Description	Screener Needed?	Actions	ü
1a	<u>In U.S. Schools 3+ Years</u> The student has never been classified as an English learner and has been attending an English-language, U.S. school for three or more consecutive years.	A screener may be necessary Proceed to #2	It may or may not be necessary to screen a student that has been in an English-language U.S. school for more than 3 years, despite having another language indicated on the home language survey. If the student has never been identified as an English learner and has been in a US school for more than 3 years, proceed to Indicator #2 to find out more information.	
OR				
1b	<u>U.S. Schools Less than 3 Years</u> The student has never been classified as an English learner but has been attending an English-language, U.S. school for less than 3 consecutive years.	A screener may be necessary Proceed to #2	If the student has not been enrolled for at least 3 consecutive years, it is possible that the student will need to be screened as a potential English learner. Proceed to Indicator # 2 to find out more information.	

Indicator	Entrance Description	Screener Needed?	Actions	ü
OR 1c	<u>Student was screened and determined ineligible.</u> The student was screened using a WIDA screener (previous versions included) and was determined ineligible.	NO a screener is NOT needed	If the student was screened using a WIDA screening tool and was found to be ineligible, the student will remain ineligible. Previous screening results can be entered into the EL Database (WIDA Screener and/or Screener for K) or uploaded into the comments in the EL Database for previous screening options such as W-APT. Screening results must be maintained in the student's cumulative record.	
2a	<u>Student Tests Proficient on DeSSA</u> The student tested proficient on DeSSA English language arts in English during the most recent administration.	NO a Screener is NOT needed	If the student tested proficient on DeSSA in English language arts during the most recent test administration, no further screening is necessary and the student is not considered an English learner. This form and the home language survey should be maintained in the student's cumulative record.	
OR 2b	<u>Student Does Not Test Proficient on DeSSA</u> The student did not test proficient on DeSSA English language arts during the most recent administration.	YES a screener is needed	If the student did not test proficient on DeSSA English language arts during the most recent test administration, the student will need to be screened as a potential English learner to determine English language proficiency. Screener results must be maintained in the student's cumulative record.	
OR 2c	<u>Student Is Not Part of a Tested Grade or Has No Previous DeSSA Record</u> The student does not have current DeSSA scores, either because they were not in a tested grade, or were not present or enrolled in school when DeSSA was administered.	YES a screener is needed	If the student is not part of a tested grade or did not take DeSSA English language arts in English during the most recent test administration, the student will need to be screened as a potential English learner to determine English language proficiency. Screening results must be maintained in the student's cumulative record.	
Comments:				

Appendix C

Parental Notifications of EL Status into English Learner Programs

*EL Entry Eligibility/Ineligibility

*EL Annual Eligibility/Ineligibility

*Waiver of Services

EL Program Placement Notification

Districts/charters must notify parents of their child's enrollment in an EL Education Program. This notice should take place no later than 25 days after the beginning of the school year or after enrollment during the school year. All parents of ELs, not just newly enrolled ELs, should be notified annually of the students' placement in a language instruction program. In addition, federal law requires that schools and districts effectively communicate with all parents and guardians, regardless of the percentage of students that speak a language other than English. A copy of written notices to the parents should be kept in the student's cumulative record. Score reports should be attached when available (Ex: WIDA ACCESS for ELLs 2.0 Score Parental Report)

The notice should be in the home language of the parent. It should be communicated in non-technical language that identifies a student as EL or non-EL. In addition, the following information should be included:

- Assessment Administered
- Current English proficiency levels (attach score reports when available)
- Current Program Placement
- Exit Requirements
- Communication regarding expected rate of graduation and SwD/EL
- Parental rights and options

Sample notifications provided by the DDOE are: EL Entry Eligible, EL Entry Ineligible, EL Annual Eligible, EL Annual Ineligible, and Waiver of Services

Sample notifications provided by the DDOE can be found in these files in the following languages: Arabic, Gujarati, Haitian Creole, Hindi, Korean, Mandarin Chinese, Punjabi, Spanish, Tagalog, and Vietnamese

****Please note:**

Districts/charters may use DDOE sample notifications or may elect to create their own. Notifications can be adapted to reflect only the programs offered by the school/district. It is essential that all notifications contain the required elements. Attach score reports when available. Regardless of the form that is used, districts/charters must maintain all notifications in the child's cumulative record.

Types of Notifications

1. Entry Eligibility (Screener)
2. Entry Ineligibility (Screener)
3. Annual Eligibility (ACCESSS)
4. Annual Ineligibility (ACCESS)
5. Waiver of Services

****See the following pages for descriptions of each sample notification**

Languages Offered in Sample Notifications (In addition to English)

1. Arabic
2. Gujarati
3. Haitian Creole
4. Hindi
5. Korean
6. Mandarin Chinese
7. Punjabi
8. Spanish
9. Tagalog
10. Vietnamese

It may be difficult to read notifications in other language, so please see the information below to help guide you. The header will list in English:

1. The language of the notification
2. The type of notification

Eligibility or Ineligibility Based on Initial WIDA Screener

EL Entry Eligibility: This notification explains to parents/guardians that because they indicated a language other than English on the Home Language Survey, their child was tested with the WIDA Screener for Kindergarten or WIDA Screener (Grades 1-12) to determine eligibility for their placement in an English Development Program. This notification also includes the following:

- Assessment administered and scores (attach score report)
- Indication of eligibility for English Language Development and Program Placement
- Delaware Exit Requirements
- Expected Rate of Graduation
- English Learners with Disabilities
- Parental Rights
- School Contact for further information

The following information will be listed **in red and highlighted on each notification indicating what you need to fill out. If you are unsure, refer to the English version of the notification.

- Pg. 2—School Year, Insert 4 Year Adjusted Graduation Rate

* The subgroup info is also available by school on page 7 and 8 of the report

<https://www.doe.k12.de.us/cms/lib/DE01922744/Centricity/Domain/467/GraduationSummaryReport.2017-18.pdf>

- Pg. 2—Your school or district or visit www.yourdistrictsite.com

EL Entry Ineligible: This notification explains to parents/guardians that because they indicated a language other than English on the Home Language Survey, their child was tested with the WIDA Screener Kindergarten or WIDA Screener (Grades 1-12) to determine eligibility for their placement in an English Development Program. This notification also includes the following:

- Assessment administered and scores (attach score report)
- Indication of **INELIGIBILITY** for English Language Development
- School Contact for further information

The following information will be listed **in red and highlighted on each notification indicating what you need to fill out. If you are unsure, refer to the English version of the notification.

- Pg. 1—Your school or district if you would like additional information

Eligibility or Ineligibility Based on Annual ACCESS Testing

Annual Eligible: This notification explains to parents/guardians that their child was tested with the WIDA ACCESS for ELLs 2.0 assessment to determine continued eligibility for their placement in an English Development Program. This notification also includes the following:

○ Assessment administered and composite score (attach score report)	○ Expected Rate of Graduation
○ Anticipated Exit Year (Based on target year plan and initial annual ACCESS baseline--see chart below)	○ English Learners with Disabilities
○ Program Placement	○ Parental Rights
○ Delaware Exit Requirements	○ School Contact for further information

Anticipated Exit Year—Baseline Determines Target Year Plan

Year 1 Baseline ACCESS Proficiency Level	# of Target Years	Year 2	Year 3	Year 4	Year 5	Year 6
4.7+	n/a	n/a	n/a	n/a	n/a	n/a
4.0 – 4.6	3 years		Target Year			
3.0 – 3.9	4 years			Target Year		
2.0 – 2.9	5 years				Target Year	
1.0 – 1.9	6 years					Target Year

*Example: If a student takes their first annual ACCESS for ELLs 2.0 and scores a 2.3, they would enter their plan year 1 of 5. The year of their first annual ACCESS is plan year 1. Depending on their proficiency level, they may have anywhere from 3-6 years to complete their plan. If a student meets exit criteria, the student will not have a target year plan. The target plan year will serve as the anticipated exit year.

The following information will be listed **in red and highlighted on each notification indicating what you need to fill out. If you are unsure, refer to the English version of the notification.

- Pg. 1—School Year
- Pg. 2— School Year, Insert 4 Year Adjusted Graduation Rate
 - * The subgroup info is also available by school on page 10-11 of the report
<https://www.doe.k12.de.us/cms/lib/DE01922744/Centricity/domain/167/graduation%20rates/18.19GraduationSummaryReport.pdf>
- Pg. 2—Your school or district if you would like additional information

Annual Ineligible: This notification explains to parents/guardians that their child was tested with the WIDA ACCESS for ELLs 2.0 assessment and it was determined that they have met the minimum state criteria for exit from their placement in an English Development Program. This notification also includes the following:

- Assessment administered and scores (attach score report)
- Anticipated Exit Year (Based on target year plan and initial annual ACCESS baseline--see chart below)
- Indication of INELIGIBILITY for English Language Development
- Indication of Post-transition monitoring for 2 years
- School Contact for further information

The following information will be listed **in red and highlighted on each notification indicating what you need to fill out. If you are unsure, refer to the English version of the notification

- Pg. 1—School Year
- Pg. 1—Your school or district if you would like additional information

Waiver of Services

Parents/guardians have the option to request that their children be withdrawn from language services in writing. Schools should NOT recommend that parents decline language services. Instead, schools are responsible for addressing parent concerns and communicating the benefits of the language development program to parents who want to waive their rights to language services. A district/charter may elect to create a waiver form that allows parents to opt-out of EL services. A written notice or waiver must include a parent signature and date and must be maintained in the cumulative record of any student who has been removed from service.

Wavier of Services: This notification explains to parents/guardians that they indicated that they did not want their child to participate in the English Learner program. It also explains the following information:

- Students are still required to take the annual ACCESS to monitor their proficiency until they meet exit criteria set by the DDOE
- Provides a place for signature and date
- Provides a place for school and grade

****The following information will be listed in red and highlighted on each notification indicating what you need to fill out. If you are unsure, refer to the English version of the notification**

- Pg. 1—Add Child's Name and complete information at the bottom

***Please note:**

Parent withdrawal must be entered into the EL Database using the "Type Instruction" field. Check the box indicating parental request and use the dropdown menu to select "regular classroom instruction" to indicate the absence of EL programming. Use the "Comment" field below to enter information regarding this withdrawal and attach the parental waiver form in PDF form. Keep a copy of this waiver in the student's cumulative folder.

Dear Parent/Guardian,

When your child registered for school, a home language survey was completed and indicated your child speaks and/or understands a language other than English. Based on this information, the law requires the school to give your child the WIDA Screener or the WIDA Screener Kindergarten to determine his/her eligibility for placement in an English Language Development program.

English Language Screening Results

Assessment Administered: ☐ WIDA Screener Kindergarten ☐ WIDA Screener

Your child's score: [Click or tap here to enter text.](#)

Your child was found **eligible** for English language supports based on Delaware's English learner entrance criteria. **See attached score reports for more information.*

Your child will receive language instruction based on his/her language needs in order to meet the challenging state content standards and develop English language proficiency. English Language Development programs are selected to best meet the individual strengths and needs of your child. All programs are designed to develop reading, writing, listening and speaking skills across all content areas.

Your child is enrolled in the following English Language Development program(s):

English Language Development Program

☐	Dual Language Immersion: Full-Service	☐	ESL Pull-out
☐	Dual Language Immersion: Pull-out	☐	ESL Push-in
☐	Dual Language Immersion: Push-in	☐	Blended Push-in and Pull-out
☐	Sheltered English Instruction	☐	Newcomer Program
☐	Transitional Bilingual	☐	English Language Development Class
☐	Co-Teaching	☐	Other:

Available English Language Development program(s) in your school:	
Program	Description
Dual Language Immersion	English partner teacher provides English language development and content area simultaneously or EL certified teacher provides push-in language support in the immersion classroom or EL certified teacher provides pull-out support to a student in an immersion classroom.
ESL Push-in	The EL teacher provides language support and/or instruction in content area in the general education classroom.
ESL Pull-out	The EL is pulled out of the regular classroom for small group language instruction.
Blended Push-in and Pull-out	The EL receives a combination of push-in and pull-out services as mentioned above.
Sheltered English Instruction	Content certified teachers who have received training on strategies to make subject-area content rigorous, culturally relevant, and comprehensible for ELs.
Newcomer Program	Newcomer EL students from various language backgrounds receive intensive English language development the majority of the day and mainstreamed for electives.
Transitional Bilingual	Instruction initially provided in the student's native language but gradually phased out.
English Language Development Class	English language development class that is aligned to the WIDA standards and counts as an elective. EL student must participate in core content classes.
Co-Teaching	EL teacher co-teaches with content area teacher and provides EL supports during instruction.

Delaware Exit Requirements

Delaware requires the use of the WIDA's ACCESS for ELLs assessments annually to determine the English language proficiency of English Learner (EL) students. English learners will be considered proficient when they earn a composite score of 4.7 or above. Most students successfully exit within six years. Students who meet the exit criteria will be monitored for two years.

Expected Rate of Graduation

In **SCHOOL YEAR, INSERT 4 YEAR ADJUSTED GRADUATION RATE %**, of high school students who were still eligible for the English language development program graduated on-time.

English Learners with Disabilities

If your child currently has an Individualized Education Plan (IEP), or a 504 Plan, the English Language Development Program will be developed in coordination with the objectives of your child's existing plan.

Parental Rights

We encourage you to be active participants in your child's education. You have the right to request regular meetings to discuss your child's achievement and academic progress. You also have the right to waive services in this program. Please contact your school or district for additional information regarding the waiver of these services.

For additional information please contact **your school or district or visit www.yourdistrictsite.com**. We look forward to working with you and your child.

Dear Parent/Guardian,

When your child registered for school, a home language survey was completed and indicated your child speaks and/or understands a language other than English. Based on this information, the law requires the school to give your child the WIDA Screener or the WIDA Screener Kindergarten to determine his/her eligibility for placement in an English Language Development program.

English Language Screening Results

Assessment Administered: ☐ WIDA Screener Kindergarten ☐ WIDA Screener

Your child's score: Click or tap here to enter text.

Your child was found to be **ineligible** for English language supports based on Delaware's English learner entrance criteria.

**See attached score reports for more information*

Please contact **your school or district if you would like additional information**. We wish you and your child continued success in the district.

Dear Parent/Guardian,

Your child was tested on the WIDA ACCESS for ELLs assessment in the Spring of **School Year** and continues to be eligible for language services. Detailed information regarding the assessment is included.

WIDA ACCESS for ELLs Assessment Results

Assessment Administered: ☐ Kindergarten ACCESS ☐ ACCESS for ELLs 2.0 ☐ Alternate ACCESS

Your child's composite score: Click or tap here to enter text.

Anticipated exit year: Click or tap here to enter text.

Your child **continues to be eligible** for English language supports based on Delaware's English learner criteria.

**See attached score reports for more information*

English Language Development Program

Your child will receive language instruction based on his/her language needs in order to meet the challenging state content standards and develop English language proficiency. English Language Development programs are selected to best meet the individual strengths and needs of your child. All programs are designed to develop reading, writing, listening and speaking skills across all content areas.

Your child is enrolled in the following English Language Development program(s):

☐	Dual Language Immersion: Full-Service	☐	ESL Pull-out
☐	Dual Language Immersion: Pull-out	☐	ESL Push-in
☐	Dual Language Immersion: Push-in	☐	Blended Push-in and Pull-out
☐	Sheltered English Instruction	☒	Newcomer Program
☐	Transitional Bilingual	☐	English Language Development Class
☐	Co-Teaching	☐	Parent Waiver of Services (You have the right to re-enroll at any time.)

Available English Language Development program(s) in your school:	
Program	Description
Dual Language Immersion: Full-Service, Push-in, Pull-out	English partner teacher provides English language development and content area simultaneously or EL certified teacher provides push-in language support in the immersion classroom or EL certified teacher provides pull-out support to a student in an immersion classroom.
ESL Push-in	The EL teacher provides language support and/or instruction in content area in the general education classroom.
ESL Pull-out	The EL is pulled out of the regular classroom for small group language instruction.
Blended Push-in and Pull-out	The EL receives a combination of push-in and pull-out services as mentioned above.
Sheltered English Instruction	Content certified teachers who have received training on strategies to make subject-area content rigorous, culturally relevant, and comprehensible for ELs.
Newcomer Program	Newcomer EL students from various language backgrounds receive intensive English language development the majority of the day and mainstreamed for electives.
Transitional Bilingual	Instruction initially provided in the student's native language but gradually phased out.
English Language Development Class	English language development class that is aligned to the WIDA standards and counts as an elective. EL student must participate in core content classes.
Co-Teaching	EL teacher co-teaches with content area teacher and provides EL supports during instruction.

Delaware Exit Requirements

Delaware requires the use of the WIDA's ACCESS for ELLs assessments annually to determine the English language proficiency of English Learner (EL) students. English learners will be considered proficient when they earn a minimum composite proficiency level of 4.7 on the Kindergarten ACCESS / ACCESS for ELLs 2.0 assessment **OR** A3 on the Alternate ACCESS assessment. Most students successfully exit within three to six years depending on initial proficiency level. Students who meet the exit criteria will be monitored for two years.

Expected Rate of Graduation

In **SCHOOL YEAR, INSERT 4 YEAR ADJUSTED GRADUATION RATE %**, of high school students who were still eligible for the English language development program graduated on-time.

English Learners with Disabilities

If your child currently has an Individualized Education Plan (IEP), or a 504 Plan, the English Language Development Program will be developed in coordination with the objectives of your child's existing plan.

Parental Rights

We encourage you to be active participants in your child's education. You have the right to request regular meetings to discuss your child's achievement, program placement and/or academic progress. You also have the right to waive or re-enroll in services in this program at any time. Please contact your school or district for additional information regarding the waiver of these services.

For additional information please contact **your school or district or visit www.yourdistrictsite.com**. We look forward to working with you and your child.

Dear Parent/Guardian,

Your child was tested on the WIDA ACCESS for ELLs assessment in the Spring of **School Year** and has **met the minimum state exit criteria** of a composite proficiency level of 4.7 on the Kindergarten ACCESS / ACCESS for ELLs 2.0 assessment **OR** A3 on the Alternate ACCESS assessment. Detailed information regarding the assessment is included.

WIDA ACCESS for ELLs Assessment Results

Assessment Administered: ☐ Kindergarten ACCESS ☐ ACCESS for ELLs 2.0 ☐ Alternate ACCESS

Your child's composite score: Click or tap here to enter text.

Anticipated exit year: Click or tap here to enter text.

**See attached score reports for more information.*

Your child's academic progress will be monitored for two years to determine if additional supports are needed. Please contact **your school or district if you would like additional information**. We wish you and your child continued success in the district.

Date: Click or tap here to enter text.

Re: Waiver for the English Learner (EL) Program

You have indicated that you do not want your child to participate in the English Learner program. This program is designed to increase your child's proficiency in the English language. You are aware that participation in this program is voluntary.

At the present time, you choose to not have your child _____ enrolled in the EL program. Your child can be re-enrolled in the program at any time by contacting the EL Department.

You also understand that by signing this waiver your child is still required to take the annual ACCESS assessment in order to monitor their English language proficiency. They must continue taking this assessment until they meet the exit criteria set by the Delaware Department of Education.

Parent /Guardian Name

Signature

Date

School

Grade

Appendix D

Students with Interrupted Formal Education (SIFE)



Student with Interrupted Formal Education (SIFE)

Oral Interview Questionnaire

Student's Name:

Student's Date of Birth:

Interviewer's Name:

Location of Interview:

Student's School:

Date:

*(To be completed within first 30 days of enrollment and
maintained in the student's cumulative record.)*

Interviewer Instructions: These are in parenthesis and italics, as 1) (*Gender: Circle one*)

Questions to ask student: These are numbered and should be read aloud to the student, as in 2) a. What is your first name?

Recording student answers: Please **PRINT CLEARLY** and do not abbreviate. Some responses require that the interviewer circle an answer that is provided. These answers should not be read aloud to the student. See the following section for more information about recording responses.

I. Personal and Language Information

(Gender: select one)	FEMALE	MALE
What is your first and last name?		
What is your date of birth? (MM/DD/YEAR)		How old are you?
In what country were you born?		
In what city or town?		
What was the first language that you learned in your home as a child?		
What other languages, if any, have you learned?		
Which language are you most comfortable using?		

II. Family and Home Background

I'd like to ask you some questions about your family and your home.

Ask each question without giving prompts for the answers. Then select the answers given by the student, filling in "OTHER" if the student's answer does not appear under a given question. If the student does not respond to a given question, you may use the prompts to help the student provide an answer.

Who do you live with? (check all that apply)							
Mother	Father	Sibling(s)	Aunt(s)	Uncle(s)	Grandparent(s)	Cousin(s)	Other
Do any of the people you live with now speak English?					Yes	No	I don't know
(If yes) Do you speak English with any of them?					Yes	No	
What is the highest level of education of the people you live with?							
Primary school	Secondary School	College/University	Graduate School	I don't know			
In which language(s) was his or her education?							
In what other language(s) does he or she read or write?							

III. Education History

Now I'd like to ask you some questions about your experiences going to school up until now. I will repeat the questions for each year that you have been in school.

Start with "When you were..." and give the first age range below. Then, continue asking all the questions in that row. Then, start again with "When you were..." and give the following age range, and ask all the questions in that row again. Continue until you reach the current age of the student.

When you were...	In what country were you living?	Did you go to school for most of that school year?	(If yes) Was your school in a city or town?	(If yes) In what language(s) were your lessons given?	(If yes) What other language(s), if any, did you study that year?	(If no) Did you study outside of school that year?
5-6						
6-7						
7-8						
8-9						
9-10						
10-11						
11-12						
12-13						
13-14						
14-15						
15-16						
16-17						
17-18						

Now I'd like to know a little bit more about your experiences at school.

What subjects were easiest for you in your country?					
Social Studies	Science	Math	Language Arts/Reading	Foreign Language	Other
What subjects were hardest for you in your country?					
Social Studies	Science	Math	Language Arts/Reading	Foreign Language	Other

IV. Language and Literacy Practices

Next, I am going to ask you some questions about the language(s) you use now.

Ask each question without giving prompts for the answers. Then select the answer(s) given by the student, filling in "OTHER" if the student answer does not appear under a given question. If the student does not respond to a given question, you may use prompts to help the student provide an answer.							
Do you like to read in your spare or free time?				Yes		No	
(If yes) What do you like to read?							
Magazines		Books		Comics		Newspapers	
Other							
(If yes) What do you like to read about?							
Sports		Fashion	Music	Entertainment		News	Science Fiction
							Mystery
Other							
(If yes) In which language(s) do you read?							
Primary Language			English			Other	
Do you like to write in your spare/free time?				Yes		No	
(If yes) What do you like to write?							
Poetry		Emails	Letters	Music Lyrics		Stories	Journal
							Reports
Other							
(If yes) In which language(s) do you write?							
Primary Language			English			Other	

Now I'm going to ask you about some other activities outside of school.

When you talk to your friends in person on the phone, which language(s) do you use?			
Primary Language		English	
		Other	
Do you use the internet or computers?		Yes	
		No	
(If yes) In which language(s)			
Primary Language		English	
		Other	
Do you watch TV?		Yes	
		No	
(If yes) In which language(s)?			
Primary Language		English	
		Other	
Do you listen to music or the radio?		Yes	
		No	
(If yes) In which language?			
Primary Language		English	
		Other	

Appendix E

English Language Acquisition Plan (ELAP)

English Language Acquisition Plan

An English Language Acquisition Plan (ELAP) is a great way to ensure that we are meeting the needs of each English Language Learner. This plan is a collaborative tool that can be used among educators to best meet the needs of each English Learner. An English Language Acquisition Plan provides information for daily classroom implementation including, but not limited, to:

- Student Demographics and Background Information
- Information regarding SIFE, Immigrant Status and/or Duress
- Accommodations and Modifications
- Strengths and Weaknesses in Language and Content
- Language Goals
- Academic Content Goals
- Grading
- Anecdotal Information

The purpose of this plan is to create a document that will help ensure collaboration among EL teachers/coordinators and mainstream teachers with a goal of English language proficiency and academic success for each individual English Learner.

An EL Coordinator or school designee should complete information regarding student's educational background (including SIFE), placement information, and language and academic goals for the school year. This should be updated every year and shared with the classroom teacher and other team members who will be responsible for helping the student attain English Language Proficiency and academic success. All teachers (including those offering specialized classes such as Gym, Technology, electives, etc. should review and understand the plan and implement it within the school setting on a daily basis.

The following information will explain each section and how to use this information to collaborate with others to improve learning outcomes for your English learner.

Section	Details on Use
Student Demographic and Information	Student demographics should be completed when a student enrolls or after initial ELAP is written.
Students with Interrupted Formal Education (SIFE)	Complete this section for any student who has had an interruption to their formal education, indicating months and years of gaps as well as retention information and any information related to their reading and writing abilities in their native language
English Learner Placement	Enter screening data for the student. If a student meets the entrance criteria as an English learner for the State of Delaware, move on to the next section. If a student was given a placement screener but did not qualify, please complete information up to this point and then file in the child's cumulative folder. If a student was screened as a potential EL, the information must also be entered into the EL Database, regardless of eligibility. No further documentation/annual review is needed unless a student is a candidate for re-entry into the EL program due to language or academic needs (After following post-transition monitoring guidance, if re-entry is determined by the team then a screener will need to be given again and entered into the EL Database. See DDOE's EL Guidebook for more information.) See EL Guidebook on Student Growth and Accountability or visit the EL Database to determine the number of plan years for a student. Annual ACCESS proficiency level from 2017 (or first annual ACCESS taken after 2017) serves as the baseline data for plan year calculation.

Section	Details on Use
Annual Review	Each year following enrollment, an annual review should be entered into this ELAP to include information about program model, interventions, co- and extra-curricular activities, as well as other academic information. A new entry should be made each year during the student’s time in an English learner program. It may also be used during the monitoring window to track progress and academic information. The annual review will also contain subsections related to Annual ACCESS, annual DeSSA assessments, and academic needs. If a student receives additional supports, interventions, etc. that information should be noted as well. Use this annual review to document information regarding instruction and interventions, as well as collaborative team discussions and decisions. When documenting language and/or academic needs, as well as when writing individual goals, consult and share with teachers and other school personnel who are charged with improving the learning outcomes of the student. The goal of the annual review is to document a continuum of services that have been ongoing to improve learning outcomes for the student.
Accommodations and Modifications	This section will document the accommodations and modifications that you provide for the learner. This list is by no means inclusive. Add in the accommodations that are used for this English learner. Document comments about the accommodations or modifications as needed. Review these with classroom teachers and other personnel who are charged with improving the learning outcomes of the student. Revisit these often and adjust as needed.

ELAP for _____ Plan Start Date _____

English Language Acquisition Plan

Update this form annually and maintain in the cumulative folder. Use this ELAP to collaborate with others who help improve the learning outcomes for your English learner.

Student Demographics and Historical Data

Student Name	
Student ID	
Date of Birth	
Place of Birth	
Immigration Date (out of country)	
Gender	
Home/Native Language	
Transferring From	
Is student migrant? (Is parent an agricultural worker?)	

Student Demographics and Historical Data (continued)	
Is student a refugee?	
Is student homeless?	
Is student a foreign exchange student?	
Is student adopted?	
Has student experienced:	
Civil unrest?	
Traumatic events?	
Physical violence or abuse?	
Natural disaster before arriving in US?	
Separation from parents/siblings due to immigration?	
Separation from parents/siblings due to natural disaster?	
Separation from parents or siblings due to deportation?	

ELAP for _____ Plan Start Date _____

SIFE Information	
Age at which student began formal education	
Age at which student discontinued formal education	
Last grade level completed	
Partial grade level completed	
Length/duration of formal education gaps (yrs./grades)	
Retention year(s)/grade(s)	
Overage for Grade Level Placement in US?	
Plan for providing remediation for SIFE?	
Can student read in native language?	
Can student write in native language?	
Is remediation required to begin literacy development?	

ELAP for _____ Plan Start Date _____

English Learner Placement	
Type of Screener Administered	
Date of Screener	
State or School District of Screener	
Person Administering Screener	
Results of Screener	
Placement Information	
Number of Plan Years Available to Attain Proficiency (Plan Year Projected Completion)	
Comments	

ELAP for _____ Plan Start Date _____

_____ Annual Review	
Person(s) Completing this Review	
Date Review Completed	
Immigrant Status (___ of 3 years or n/a)	
Grade	
Age	
School	
District	
Classroom Teacher	
EL Teacher/Coordinator	
Program Placement for Gen. Ed Instruction	
Program Model for EL Support/Instruction	
Contact Hours with EL Teacher	
RtI/MTSS Interventions and Information	
Spec Ed or 504 or Speech?	
Gifted and Talented?	
Long term EL (more than 5 years?)	
Enrolled in Dual Language Immersion?	
Parent Preferred Language Oral	
Parent Preferred Language Written	
Interpreter/ Translation Required?	

ELAP for _____ Plan Start Date _____

_____ Annual Review	
Most Recent ACCESS Results	
Test/Type Given	
Date	
Listening	
Reading	
Speaking	
Writing	
Overall Composite	
Increase +% or Decrease -% from Previous Annual ACCESS	
Language Strengths	
Language Weaknesses	
Student Goals for Language Development— 1 st Semester	
Student Goals for Language Development— 2 nd Semester	
Student Goals for Language Development— End of Year	

ELAP for _____ Plan Start Date _____

_____ Annual Review	
Most Recent Statewide Assessment Scores (DeSSA)	
SBAC ELA	
SBAC Math	
DeSSA Science	
DeSSA Social Studies	
PSAT/SAT	
Other	
Academic Strengths/Weaknesses and Goals	
Academic Strengths	
Academic Weaknesses	
Student Goals for Academic Development— 1 st Semester	
Student Goals for Academic Development— 2 nd Semester	
Student Goals for Academic Development— End of Year	

ELAP for _____ Plan Start Date _____

_____ Annual Review	
Grading Information	
Student Receives Typical Grading (with accommodations and support as necessary)	
Student Receives Modified Grading (Narrative should be provided)	
Student Receives Non-typical Grading Pass/Fail; S/N/U; other Narrative should be provided	
Comments	

Accommodations and Modifications	
Give test orally	
Give instructions in writing and orally	
Assign a buddy of same language or English speaking	
Allow errors in speaking and writing	
Accept writing in first language	
Highlight key vocabulary	
Reduce amount of work requires	
Assess comprehension through demonstration or alternative measures (drawings, gestures)	
Allow open book or open notes test	
Indicate pages in text to find answers	
rephrase questions, directions, or explanations	
Reduce multiple choice distractors	
Provide study guides or outlines	
Provide video on subject	
Allow extended time for completion	
Use books on tape	
Use reduced text so that print is not dense	
Adapt homework to reflect langue proficiency	
Adapt homework to reflect home support	

Accommodations and Modifications	
Provide hands-on activities and explanation	
Allow extended time to answer questions or permit alternative explanations (drawings)	
Accept participation at any level, even one word	
Allow use of translation dictionaries in native language	
Peer and native language support	
Gestures for added emphasis	
Simple conversations	
Visuals and verbal cues to reinforce spoken or written words	
Pre-teach vocabulary	
Provide phrases or simple sentence frames for oral and written response	
Rephrase, repeat, or slow down	
Extended wait time	
Word Bank of key vocabulary	
Adapted texts	
Tiered Sentence Stems	
Organize reading in chunks	
Translate word, phrase or sentences as needed	
Writing on familiar, concrete topics	
scaffold writing assignments	

ELAP for _____ Plan Start Date _____

Accommodations and Modifications	
Read and model think aloud	
Extend time for complete or omit assignments	
Lower reading level	
Use visuals, realia, and other supports	
Use individual and small group instruction	
Allow for oral response	
Read test aloud	
Simplify language	
use manipulatives	
Plan for cooperative learning	
Use graphic organizers	
Limit amount of input to 5 key concepts or less	
Modify format of the test and/or shorten length	
Use pass/fail or satisfactory/unsatisfactory with feedback both orally and in writing	

Appendix F

Delaware Alternate Identification Protocol

Alternative Screening for Students
with Significant Cognitive Disabilities

Delaware Alternative English Learner Identification Protocol

Due to the nature of some disabilities, certain students will be unable to participate in the traditional screening process, even with accommodations. When the team has determined that the student cannot meaningfully participate with accommodations, the Alternative English Learner Identification Protocol should be followed.

There are three components to the Delaware Alternative English Learner Identification Protocol.

1. Parent Questionnaire
2. Observation Protocol
3. English Learner Determination Narrative

All components must be completed for students who indicate a language other than English on the Home Language Survey but cannot meaningfully participate in the traditional screeners.

Delaware Alternative English Learner Identification Protocol

District/School _____	Date _____
Legal Name of Student _____	Student DOB _____

☐ After careful review of the IEP and/or suspected disability the team has determined that the student is unable to participate in the Kindergarten WIDA Screener assessment or the WIDA Screener with accommodations.

DELAWARE ALTERNATIVE ENGLISH LEARNER IDENTIFICATION PROTOCOL: SECTION 1 OF 2 *PARENT/GUARDIAN QUESTIONNAIRE*

Directions: This form is to be completed by the educational diagnostician and EL specialist through a parent/guardian interview using an interpreter when necessary.

1	What language do you use to communicate with your child? _____
2	How often do you use a language other than English to speak to your child? <i>Never</i> <i>Sometimes</i> <i>Always</i>
3	Which language does your child best understand?
3a	If both, does one language seem to be preferred? Yes _____ No
4	Which language does your child use to communicate? _____ <i>English</i> <i>Both English &</i> _____ <i>Non-Verbal</i>
4a	If your child is non-verbal, how does your child communicate at home?
5	Does your child read/write in any language? Yes _____ <i>No</i>

Additional comments from parent/guardian:

Delaware Alternative English Learner Identification Protocol

DELAWARE ALTERNATIVE ENGLISH LEARNER IDENTIFICATION PROTOCOL: SECTION 2 OF 2 **STUDENT OBSERVATION**

Directions: This observation utilizes a team approach. The team includes the parent/guardian, student, EL specialist, and special education teacher.

The parent/guardian will assist in engaging the student using the native language during this observation in order to improve accuracy of response. The special educator will engage the student in English.

"I'm going to ask you some questions in both English and Spanish (native language). Do the best you can and remember to communicate to show us when you understand." (Assessment administrator may refer directly to a communication system used by a student.)

Prompt	Observed Behaviors	Outcome
1a. Special educator speaks in English about a topic that is highly engaging to the student with the object. <i>TA Notes: Highly engaging objects vary depending on a student. Parents or staff with knowledge of the student may decide on this object. The same object should be used in both English and the native language.</i> <i>Highly engaging topic should be determined using the provided "Engagement Survey."</i>	○ Responds with sentence ○ Responds with two words ○ Responds with one word ○ Vocalization ○ Body movement ○ Moves head toward object ○ Eye gaze ○ Facial expression ○ No observed response	○ No response in either language (0) ○ Student response observed only in native language (1) ○ Student response observed only in English (0) ○ Student response the same in both languages (0) <i>Comments:</i>
1b. Parent/guardian speaks in native language about a different topic that is highly engaging to the student with the object.	○ Responds with sentence ○ Responds with two words ○ Responds with one word ○ Vocalization ○ Body movement ○ Moves head toward object ○ Eye gaze ○ Facial expression ○ No observed response	

Delaware Alternative English Learner Identification Protocol

Prompt	Observed Behaviors	Outcome
2a. Special educator speaks in English and asks student to follow a different one-step direction. <i>TA Note: (Example) "Pick up the ball."</i> <i>"Raise your hand." Student can use their mode of communication to respond.</i> <i>If student is unable to follow a physical direction, try--</i> <i>"Smile" "Look up" "Look down" Use of eye gaze to activate a switch.</i>	○ Responds with sentence ○ Responds with two words ○ Responds with one word ○ Follows one step direction ○ Vocalization ○ Body movement ○ Moves head toward object ○ Eye gaze ○ Facial expression ○ No observed response	○ No response in either language (0) ○ Student response observed only in native language (1) ○ Student response observed only in English (0) ○ Student response the same in both languages (0) <i>Comments:</i>
2b. Parent/guardian speaks in native language and asks student to follow a one-step direction.	○ Responds with sentence ○ Responds with two words ○ Responds with one word ○ Follows one step direction ○ Vocalization ○ Body movement ○ Moves head toward object ○ Eye gaze ○ Facial expression ○ No observed response	

Delaware Alternative English Learner Identification Protocol

Prompt	Observed Behaviors	Outcome
3a. Special educator speaks in English and asks student a yes/no question <i>TA Note: Allow student to use any communication system to demonstrate yes/no.</i>	○ Responds with sentence ○ Responds with two words ○ Responds with yes/no ○ Vocalization ○ Body movement ○ Moves head toward object ○ Eye gaze ○ Facial expression ○ No observed response	○ No response in either language (0) ○ Student response observed only in native language (1) ○ Student response observed only in English (0) ○ Student response the same in both languages (0) <i>Comments:</i>
3b. Parent/guardian speaks in native language and asks student a yes/no question	○ Responds with sentence ○ Responds with two words ○ Responds with yes/no ○ Vocalization ○ Body movement ○ Moves head toward object ○ Eye gaze ○ Facial expression ○ No observed response	

Delaware Alternative English Learner Identification Protocol

Prompt	Observed Behaviors	Outcome
4a. Special educator speaks in English and asks student an open ended question <i>TA Note: Allow student to use any communication system to respond.</i>	○ Responds with sentence ○ Responds with two words ○ Responds with one word ○ Vocalization ○ Body movement ○ Moves head toward object ○ Eye gaze ○ Facial expression ○ No observed response	○ No response in either language (0) ○ Student response observed only in native language (1) ○ Student response observed only in English (0) ○ Student response the same in both languages (0) <i>Comments:</i>
4b. Parent/guardian speaks in native language and asks student an open ended question	○ Responds with sentence ○ Responds with two words ○ Responds with one word ○ Vocalization ○ Body movement ○ Moves head toward object ○ Eye gaze ○ Facial expression ○ No observed response	

Total points: _____

Scale: 0-1= Not likely an English learner

2+ points= Likely English learner

DELAWARE ALTERNATIVE ENGLISH LEARNER IDENTIFICATION PROTOCOL
English Learner Determination Narrative

District/School _____	Date _____
Legal Name of Student _____	Student DOB _____

Directions: The Delaware Alternative English Learner Identification Protocol Determination Narrative must be kept in the student cumulative file. This form shall also be shared with the parent/guardian regarding English learner status determination.

☐ Using the Delaware Alternative English Learner Identification Protocol, the team has determined that the above named student is identified as an English Learner. Appropriate services to support English language development will be discussed with the team. The student will be assessed annually using the WIDA ACCESS Alternative Assessment.

☐ Using the Delaware Alternative English Learner Identification Protocol, the team has determined that the above named student is not identified as an English Learner at this time. The district/charter will continue to monitor the student's language development.

**If the student consistently did not respond in either language, the protocol must be administered annually as communication develops.*

Rationale for determination based on protocol:

<u>Title</u>	<u>Signature</u>
Parent/Guardian:	
Parent/Guardian:	
Special Educator:	
English Learner Educator:	
Administrator:	
Student (if applicable):	

A copy of this form must be uploaded as a PDF into the EL Database within two weeks of completion.

Appendix G

English Language Service Discussion for English Learners with Disabilities Form

This discussion must be held annually for students who are identified as English Learners

District/School: [Click or tap here to enter text.](#)

Date : [Click or tap here to enter text.](#)

Legal Name of Student: [Click or tap here to enter text.](#)

Student DOB: [Click or tap here to enter text.](#)

English Language Service Discussion For English Learners with Disabilities

The following points should be considered to ensure that English learner services are designed in collaboration to meet the unique needs of the student. A team including the EL teacher, special educator, parent and a speech/language pathologist, when appropriate, should complete this discussion form and make an English learner service decision.

1. The students primary language or communication mode is one or more of the following:

☐ Spoken English/ ASL

☐ Other mode of communication

Specify [Click or tap here to enter text.](#)

☐ Other Spoken Language

Specify [Click or tap here to enter text.](#)

☐ Non-English based sign system

Specify [Click or tap here to enter text.](#)

2. An explanation of all English Learner educational options available for the student has been provided and the team has considered the appropriateness of each.

Issues considered (i.e. *two-way immersion, bilingual, ESL pull-out, ESL push-in, specialized support, etc.*):

Discussion Summary: [Click or tap here to enter text.](#)

3. Teachers, interpreters and other specialists developing and overseeing the plan on behalf of the student must have knowledge of the English acquisition and be able to accommodate for, the student's language needs.

Issues considered (i.e. *training/mentoring for staff, accommodations utilized for student, specific strategies used by staff*)

Discussion Summary: [Click or tap here to enter text.](#)

4. The accessibility of academic instruction, school services and extracurricular activities the student will receive have been identified.

Issues considered (*i.e. assistive technology needed for student, access to communication in extension programs (field trips), support personnel available*)

Discussion Summary:

English Learner Services Decision

This choice must be updated annually to ensure that a student can return to a less restrictive English learner service at any time.

Direct Services:

☐ Participates in the regular education LEA English Learner program with accommodations and/or additional supports:

- ☐ Two-way immersion
- ☐ Bilingual program
- ☐ ESL pull-out
- ☐ ESL push-in
- ☐ ESL co-teaching
- ☐ Other [Click or tap here to enter text.](#)

Indicate the required accommodation or support:

- ☐ Specially designed pull-out support provided by an EL teacher
- ☐ Specially designed push-in support provided by an EL teacher

Indirect Services:

☐ Specialized supports identified to meet language needs designed in consultation with an EL teacher/specialist, including services by a Speech Language Pathologist or additional staff developing language/communication.

☐ Consultative services provided by the EL teacher/specialist, in partnership with the classroom teacher and if appropriate the Speech Language Pathologist

Frequency: [Click or tap here to enter text.](#)

Duration: [Click or tap here to enter text.](#)

**Frequency should be determined based on the student's level of English language and necessary supports for academic success.*

Reason for final service decision: [Click or tap here to enter text.](#)

GUIDE FOR DISTRICT IMPLEMENTATION OF PROGRAMS FOR ENGLISH LEARNERS



Delaware
Department of Education